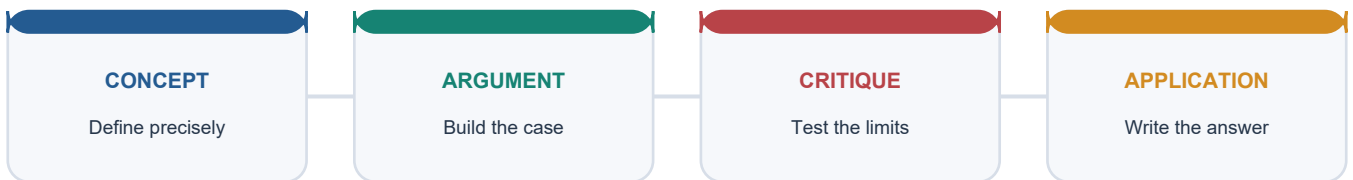


COMPLETE LEARNING SESSION

Polity 19 - Governor, Chief Minister and State Council - Complete Learning Session

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 19 - Governor, Chief Minister and State Council - Complete Learning Session

Subject: Indian Polity | Topic: 19 | GS-II + Prelims | Legal status checked: 7 September 2026

Source control and limitations

- Canonical owners read first: basic/Governor-and-CM.md, the Topic 19 complete owner and the separate Advanced owner, with bounded cross-links to Federal System, Emergency Provisions, President, PM-Council, State Legislature, Anti-Defection and High Court.
- OCR-searchable book check: *Indian Polity* by M. Laxmikanth, PDF pages 649-686, and the corresponding courseware pages beginning 637.
- Primary legal control: repository-held official Constitution text; official Supreme Court PDFs for B.P. Singhal, Nabam Rebia, Rameshwar Prasad, Epuru Sudhakar, Shivraj Singh Chouhan, State of Punjab, State of Tamil Nadu and the 20 November 2025 Article 143 opinion; official UPSC 2025 Set-A paper and final key.
- The Legislative Department Constitution landing page returned HTTP 403 during this repair, so exact constitutional text was checked against the repository-held official 2026 PDF and judgment quotations. No Qdrant query was required.
- The full official Punchhi volumes were not located through the bounded live check; commission detail is therefore limited to the canonical owners, OCR books, official Sarkaria material and official parliamentary status references. No recommendation is presented as enacted law.

Roadmap

Stage	Coverage	Exam outcome
Constitutional skeleton	Articles 153-167	Locates every office and responsibility
Governor's office	Appointment, qualification, oath, conditions, tenure, pleasure and immunity	Solves factual close options
Governor's powers	Executive, legislative, financial, judicial and special roles	Builds complete 10/15-mark bodies
Advice and discretion	Article 163, <i>Shamsher Singh (1974)</i> and narrow exceptions	Prevents the "personal ruler" error
Political crises	Hung Assembly, floor test, dismissal, dissolution and caretaker government	Applies doctrine to facts
Legislative control	Articles 168, 171, 174-176, 200-201 and 213	Answers assent and ordinance questions
Chief Minister	Appointment, six-month rule, powers and Article 167	Explains the real State executive
State Council	Articles 163-164, responsibility, ranks, cap and defector bar	Solves ministry questions
Federal debate	Dual role, Article 356, Chancellor disputes and reform commissions	Produces balanced GS-II analysis
Workbook	PYQs, MCQs, remedials and solved Mains practice	Converts coverage into marks

Scope ownership and cross-links

- **Polity 12 - Federal System:** federalism as Basic Structure, strong-Union design and bargaining federalism.
- **Polity 13 - Centre-State and Inter-State Relations:** State-law control, Union directions and intergovernmental reform.
- **Polity 14 - Emergency Provisions:** full Article 356 procedure, duration, parliamentary control and *S.R. Bommai (1994)* consequences.
- **Polity 15 - President and Vice-President:** President-Governor comparison, Article 72-161 and Article 201.
- **Polity 16 - PM and Council of Ministers:** Union parallel, responsibility and caretaker convention.
- **Polity 17 - Parliament:** Union legislative procedure, ordinances and privileges comparison.
- **Anti-Defection Law:** Speaker adjudication, whip, 91st Amendment and *Subhash Desai (2023)*'s party/faction holdings.
- **State Legislature:** Articles 168-212, Legislative Council composition and Bill procedure.
- **High Court:** institutional position protected by Article 200's mandatory-reservation proviso.
- [LIMIT] This package owns the Governor, Chief Minister and State Council of Ministers. Cross-links prevent repetition, but the Foundation/Core below is independently answer-complete.

BASIC LEARNING SESSION

SESSION 1 - CONSTITUTIONAL DESIGN: ONE STATE EXECUTIVE, TWO POLITICAL IDENTITIES

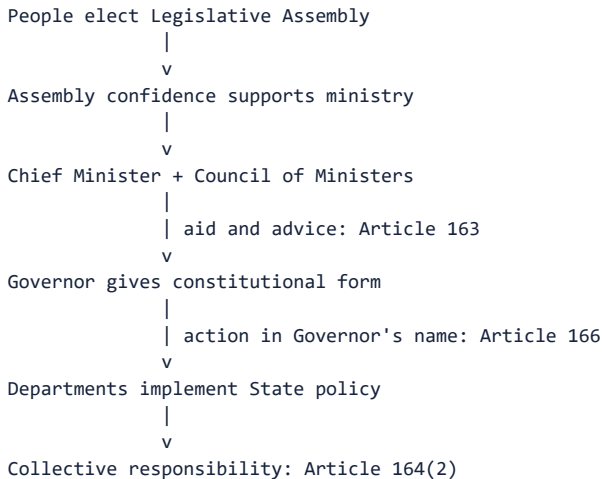
VISUAL FIRST - ORIGIN AND CONSTITUTIONAL EVOLUTION

Government of India Act, 1935
colonial Governor with reserve/discretionary powers
|
Constituent Assembly, 1947-49
elected-Governor proposal rejected to avoid rival mandate
|
26 January 1950
responsible State executive under Articles 153-167
|
Seventh Amendment Act, 1956, section 6
Article 153 proviso: same person may govern two or more States
|
Modern doctrine
Shamsher Singh -> Bommai -> Nabam Rebia -> 2023 Punjab -> 2025 assent opinion

Timeline use: Colonial reserve power explains present anxiety, but the republican Governor operates inside parliamentary responsibility and judicial review.

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 1 - Responsible State government



DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A State executive joins a constitutional Governor with a Chief Minister-led responsible government.

Technical definition: Articles 153-167 vest formal authority in the Governor while Assembly confidence gives political authority to the Chief Minister and Council.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

State executive design separates legal form from democratic command: the Governor constitutes office while the confidence-holding ministry governs.

MUST-WRITE KEYWORDS

- Governor
- Chief Minister
- Assembly confidence
- responsible government

How to use them: Frame the answer through Governor; define Chief Minister, connect Assembly confidence with responsible government to explain the mechanism, and close with the decisive comparison or qualification.

Caption: Democratic authority comes from Assembly confidence; formal executive action is expressed through the Governor.

- [FACT] Article 153 provides a Governor for each State and permits the same person to be Governor of two or more States.
- [FACT] Article 154 vests State executive power in the Governor, exercisable directly or through subordinate officers according to the Constitution.
- [FACT] Article 163 creates a Council of Ministers headed by the Chief Minister to aid and advise the Governor, except in constitutionally recognised discretionary fields.
- [FACT] Article 164(2) makes the Council collectively responsible to the Legislative Assembly.
- [ANALYSIS] The State therefore has a **dual executive**: Governor as formal constitutional head; CM-led ministry as responsible political executive.
- [LIMIT] "Nominal" does not mean irrelevant. The Governor performs constitutionally necessary acts, but ordinary policy authority belongs to the confidence-holding ministry.

Visual 2 - Articles 153-167 master map

Article	Subject	One-line recall
153	Governors	One for each State; one person may serve multiple States

Article	Subject	One-line recall
154	Executive power	Vested in Governor; exercised constitutionally
155	Appointment	President appoints by warrant
156	Term	Five years, subject to President's pleasure
157	Qualification	Citizen; at least 35
158	Conditions	No legislature membership/office of profit; residence and protected emoluments
159	Oath	By High Court Chief Justice or available senior judge
160	Contingency	President may provide for unprovided contingencies
161	Clemency	State-field offences; narrower than Article 72
162	Executive extent	Coextensive broadly with State legislative competence, subject to constitutional limits
163	Aid/advice	CM-led Council; narrow discretion carve-out
164	Ministers	Appointment, pleasure, responsibility, oaths, cap and six-month rule
165	Advocate General	State's highest constitutional law officer
166	Business form	Action in Governor's name; authentication and business rules
167	CM duties	Communicate, furnish information and collectivise decisions

Memory line: 153-162 build the Governor; 163-167 build responsible State government.

PRELIMS TRAP

Do not treat formal vesting in the Governor as personal executive government.

MAINS USE

Electors choose the Assembly, its confidence sustains the Council, and gubernatorial acts give constitutional form. The design combines continuity and responsible government but creates tension through Union appointment of the State head.

MINI RECAP

State executive design separates legal form from democratic command: the Governor constitutes office while the confidence-holding ministry governs.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: The State executive separates formal authority from democratic responsibility.

Named evidence: Articles 154, 163 and 164(2) vest executive form in the Governor but make the CM-led Council responsible to the Legislative Assembly.

Analysis: Power follows responsibility: the ministry controls policy because it must retain confidence, while gubernatorial form supplies continuity and legality.

Qualification: The Governor is therefore not redundant; constitutionally assigned process functions remain real, but they do not create an ordinary personal policy mandate.

CLOSING RECALL FLOW - CONSTITUTIONAL DESIGN: ONE STATE EXECUTIVE, TWO POLITICAL IDENTITIES

START / CONCEPT: Constitutional design: one State executive, two political identities



EXACT TERMS: Governor · Chief Minister · Assembly confidence · responsible government



MECHANISM / ARGUMENT: Electors choose the Assembly, its confidence sustains the Council, and gubernatorial acts give constitutional form.



CONSEQUENCE / CONTRAST: The design combines continuity and responsible government but creates tension through Union appointment of the State head.



UPSC TRAP / ANSWER-USE: Do not treat formal vesting in the Governor as personal executive government.



ANSWER-GRABBING FORMULATION: State executive design separates legal form from democratic command: the Governor constitutes office while the confidence-holding ministry governs.

SESSION 2 - APPOINTMENT, QUALIFICATIONS, OATH AND CONDITIONS

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 3 - Entry into office

Article 155 appointment by President



Article 157 eligibility

- citizen of India
- completed 35 years



Article 158 conditions checked

- no MP/State-legislature seat
- no other office of profit



Article 159 oath before HC Chief Justice



Assumes constitutional office

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The President appoints a Governor who must satisfy limited constitutional qualifications and office conditions.

Technical definition: Articles 155 and 157-159 govern warrant appointment, citizenship, age 35, incompatible offices, emoluments and oath.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Appointment, eligibility and conditions are separate legal questions; Sarkaria conventions are not constitutional qualifications.

MUST-WRITE KEYWORDS

- Article 155
- Article 157
- age 35
- Article 158
- Article 159

How to use them: Frame the answer through Article 155; define Article 157, connect age 35 with Article 158 to explain the mechanism, and use Article 159 for the decisive comparison or qualification.

- [FACT] The Governor is **appointed**, not elected. Article 155 uses appointment by the President by warrant under his hand and seal.
- [FACT] Article 157 requires citizenship of India and completion of **35 years**.
- [FACT] Article 158 bars membership of either House of Parliament or a State legislature. If a sitting member assumes office as Governor, the seat is deemed vacated.
- [FACT] The Governor cannot hold another office of profit.
- [FACT] The Governor is entitled to official residence without rent and to emoluments, allowances and privileges determined by parliamentary law; emoluments and allowances cannot be diminished during the term.
- [FACT] Where one person is Governor of two or more States, emoluments and allowances are allocated among those States in the proportion determined by the President.
- [FACT] Under Article 159, the oath is administered by the Chief Justice of the High Court exercising jurisdiction, or in that judge's absence by the senior-most available judge of that Court.
- [LIMIT] "Outsider" status and consultation with the Chief Minister are reform conventions/recommendations, not constitutional qualifications.

Visual 4 - Appointment: text versus desirable convention

Layer	What controls	Legal status
Constitution	President appoints; citizen; 35; conditions in Article 158	Binding law
Parliamentary design	Emoluments and privileges under law	Binding where enacted
Sarkaria ideal	Eminent outsider; detached from local politics; consult CM	Recommendation
Political practice	Choice may reflect Union priorities	Practice, not constitutional rule

UPSC trap: There is no constitutional election, electoral college, State-legislature confirmation or minimum educational qualification for Governor.

PRELIMS TRAP

Outsider status, CM consultation and eminence are recommendations or conventions, not binding qualifications.

MAINS USE

Presidential warrant and eligibility lead to oath before the High Court Chief Justice or available senior judge. Minimal legal qualifications preserve flexibility but intensify debate over neutral selection conventions.

MINI RECAP

Appointment, eligibility and conditions are separate legal questions; Sarkaria conventions are not constitutional qualifications.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: The Constitution deliberately gives the Governor a narrow eligibility test and an appointive, not electoral, mandate.

Named evidence: Articles 155 and 157-159 provide presidential warrant appointment, citizenship, age thirty-five, incompatible-office conditions and the High-Court-administered oath.

Analysis: Appointment avoids a competing popular mandate inside a parliamentary State executive, while the oath binds the incumbent to constitutional service rather than Union-party preference.

Qualification: The Sarkaria ideas of an eminent outsider, political detachment and Chief Minister consultation are recommendations, not additional constitutional qualifications.

CLOSING RECALL FLOW - APPOINTMENT, QUALIFICATIONS, OATH AND CONDITIONS

START / CONCEPT: Appointment, qualifications, oath and conditions

|

v

EXACT TERMS: Article 155 · Article 157 · age 35 · Article 158 · Article 159

|

v

MECHANISM / ARGUMENT: Presidential warrant and eligibility lead to oath before the High Court Chief Justice or available senior judge.

|

v

CONSEQUENCE / CONTRAST: Minimal legal qualifications preserve flexibility but intensify debate over neutral selection conventions.

|

v

UPSC TRAP / ANSWER-USE: Outsider status, CM consultation and eminence are recommendations or conventions, not binding qualifications.

|

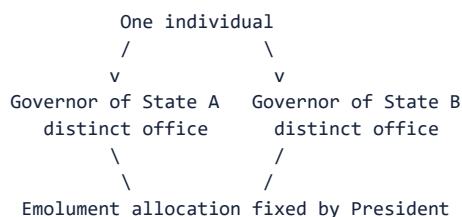
v

ANSWER-GRABBING FORMULATION: Appointment, eligibility and conditions are separate legal questions; Sarkaria conventions are not constitutional qualifications.

SESSION 3 - COMMON GOVERNOR, TERM, PLEASURE, RESIGNATION, TRANSFER AND CONTINUITY

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 5 - One person, multiple State offices



DEFINITION / WHAT THIS IS CALLED

Plain-language definition: One person may govern multiple States, and each office continues subject to presidential pleasure.

Technical definition: Articles 153 proviso and 156 permit a common Governor, five-year outer term, earlier removal, resignation and holdover until a successor enters office.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The five-year term is an outer period subject to pleasure, not a guaranteed lease in one State.

MUST-WRITE KEYWORDS

- Article 153
- Article 156
- President's pleasure
- common Governor
- B.P. Singhal

How to use them: Frame the answer through Article 153; define Article 156, connect President's pleasure with common Governor to explain the mechanism, and use B.P. Singhal for the decisive comparison or qualification.

- [FACT] The Constitution (Seventh Amendment) Act, 1956, section 6 added the Article 153 proviso with effect from 1 November 1956, allowing one person to be appointed Governor of two or more States.
- [ANALYSIS] A common incumbent does not merge the States or their Councils of Ministers. Each constitutional relationship remains State-specific.

Visual 6 - Tenure is a floorless outer term, not a guaranteed lease

Appointment

- +---- Article 156(1): President's pleasure can end office
- +---- Article 156(2): resignation addressed to President
- +---- Article 156(3): five-year term, subject to pleasure
- +---- Continuity: remains until successor enters office

- [FACT] Article 156 states a five-year term **subject to the pleasure of the President**.
- [FACT] The Governor may resign by writing addressed to the President.
- [FACT] The Governor continues until the successor enters office, avoiding an interregnum.
- [FACT] The constitutional scheme permits transfer and reappointment; it does not create an enforceable right to remain in one State for five years.
- [ANALYSIS] Pleasure creates structural dependence because the appointing Union executive can bring the tenure to an end.
- [LIMIT] Pleasure is not the same as a constitutional impeachment process, and the text specifies no State-legislature removal vote.
- [FACT] *B.P. Singhal v. Union of India* (2010) preserves presidential pleasure but subjects removal to constitutional non-arbitrariness. The Governor has no enforceable five-year lease, yet cannot lawfully be removed for capricious, unreasonable or mala fide reasons.

Visual 7 - Tenure distinctions

Proposition	Correct?	Why
"Governor has a guaranteed five-year term"	No	Five years is subject to pleasure
"Governor must leave exactly after five years even if successor is absent"	No	Continuity clause applies
"Governor may be transferred"	Yes	No State-specific tenure guarantee
"Governor may be reappointed"	Yes	Constitution does not bar it
"State Assembly can impeach Governor under existing text"	No	No such constitutional process

PRELIMS TRAP

No State legislature can impeach a Governor under the current Constitution, but pleasure is not arbitrary power.

MAINS USE

Appointment continues until resignation, removal, transfer or successor entry; *B.P. Singhal* subjects early removal to non-arbitrariness. Continuity avoids vacancy, while pleasure tenure creates structural Union dependence.

MINI RECAP

The five-year term is an outer period subject to pleasure, not a guaranteed lease in one State.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: Article 156 creates an outer five-year term without guaranteeing five years in a particular State.

Named evidence: The pleasure clause, resignation route and holdover rule operate with *B.P. Singhal* (2010), while *Hargovind Pant* (1979) confirms that the office is not Union employment.

Analysis: Pleasure and transfer create dependence incentives, but constitutional non-arbitrariness prevents removal from becoming an openly capricious patronage device.

Qualification: A Governor has neither impeachment protection nor an enforceable five-year lease; equally, ideological difference alone cannot be disguised as mala fide removal.

CLOSING RECALL FLOW - COMMON GOVERNOR, TERM, PLEASURE, RESIGNATION, TRANSFER AND CONTINUITY

START / CONCEPT: Common Governor, term, pleasure, resignation, transfer and continuity



EXACT TERMS: Article 153 · Article 156 · President's pleasure · common Governor · B.P. Singhal



MECHANISM / ARGUMENT: Appointment continues until resignation, removal, transfer or successor entry; B.P. Singhal subjects early removal to non-arbitrariness.



CONSEQUENCE / CONTRAST: Continuity avoids vacancy, while pleasure tenure creates structural Union dependence.



UPSC TRAP / ANSWER-USE: No State legislature can impeach a Governor under the current Constitution, but pleasure is not arbitrary power.



ANSWER-GRABBING FORMULATION: The five-year term is an outer period subject to pleasure, not a guaranteed lease in one State.

SESSION 4 - ARTICLE 361 IMMUNITY AND ACCOUNTABILITY

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 8 - Immunity protects the office-holder, not unlawful government action

PERSONAL IMMUNITY DURING TERM

- no criminal proceeding instituted or continued
- no arrest or imprisonment process
- personal civil claim only after two months' notice
- official non-answerability to court

DOES NOT CREATE

- immunity for the State government's action
- freedom from judicial review of unconstitutional material
- legislative speech privilege under Article 194

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 361 gives temporary personal protections to a serving Governor without immunising unlawful government action.

Technical definition: Official non-answerability, suspension of criminal process, arrest immunity and notice for personal civil proceedings coexist with judicial review through proper respondents.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Constitutional immunity protects office performance, not a pocket of unreviewable State power.

MUST-WRITE KEYWORDS

- **Article 361**
- **criminal proceedings**
- **arrest immunity**
- **civil notice**
- **judicial review**

How to use them: Frame the answer through Article 361; define criminal proceedings, connect arrest immunity with civil notice to explain the mechanism, and use judicial review for the decisive comparison or qualification.

- [FACT] Article 361 makes the Governor not answerable to any court for the exercise and performance of official powers and duties.
- [FACT] No criminal proceeding may be instituted or continued against a Governor during the term.
- [FACT] No process for arrest or imprisonment may issue during the term.

- [FACT] A civil proceeding concerning a personal act may be instituted during the term only after two months' written notice containing the required particulars.
- [LIMIT] The immunity of the person does not immunise the underlying governmental action, relevant material or constitutional validity from review through proceedings against the State or Union as legally appropriate.
- [FACT] Article 194 protects speech/votes of members of a State legislature. The Governor is a component of the legislature under Article 168 but **not a member** of either House.

Visual 9 - Routed immunity discriminators

Demand	Correct doctrinal distinction
2018 Prelims Q41	No criminal proceedings during term; emoluments/allowances cannot be diminished during term
2025 Prelims Q59	Article 361 office immunity is not Article 194 legislative speech immunity
Common trap	"Part of legislature" under Article 168 does not make Governor a legislator

PRELIMS TRAP

Being part of the legislature under Article 168 does not give the Governor Article 194 member speech privilege.

MAINS USE

Proceedings against the office-holder pause or require notice, while courts may still test the underlying action and material. The rule protects institutional functioning without extinguishing later liability or constitutional remedies.

MINI RECAP

Constitutional immunity protects office performance, not a pocket of unreviewable State power.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: Article 361 protects the incumbent's person so that the office can function, not the legality of gubernatorial action.

Named evidence: Its bars on personal answerability, criminal process and arrest coexist with Rameshwar Prasad's review of the supporting governmental material.

Analysis: Courts can test mala fides, relevance and constitutional authority through proceedings against the appropriate government without summoning the Governor personally.

Qualification: Temporary personal immunity neither extinguishes later liability nor converts Article 168 membership of the legislature into Article 194 membership privilege.

CLOSING RECALL FLOW - ARTICLE 361 IMMUNITY AND ACCOUNTABILITY

START / CONCEPT: Article 361 immunity and accountability

|

v

EXACT TERMS: Article 361 • criminal proceedings • arrest immunity • civil notice • judicial review

|

v

MECHANISM / ARGUMENT: Proceedings against the office-holder pause or require notice, while courts may still test the underlying action and material.

|

v

CONSEQUENCE / CONTRAST: The rule protects institutional functioning without extinguishing later liability or constitutional remedies.

|

v

UPSC TRAP / ANSWER-USE: Being part of the legislature under Article 168 does not give the Governor Article 194 member speech privilege.

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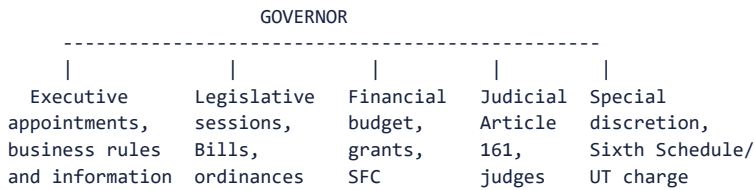
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ANSWER-GRABBING FORMULATION: Constitutional immunity protects office performance, not a pocket of unreviewable State power.

SESSION 5 - GOVERNOR'S POWERS: COMPLETE CLASSIFICATION

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 10 - Five power clusters



DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Governor powers fall into executive, legislative, financial, clemency and exceptional constitutional or statutory categories.

Technical definition: The classification spans Articles 154, 161, 166, 168-176, 200, 202-213, 233, 243-I, 243K, 316 and 356.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A high-scoring answer classifies gubernatorial powers before asking whether advice or discretion controls each one.

MUST-WRITE KEYWORDS

- executive powers
- legislative powers
- financial powers
- Article 161
- statutory role

How to use them: Frame the answer through executive powers; define legislative powers, connect financial powers with Article 161 to explain the mechanism, and use statutory role for the decisive comparison or qualification.

A. Executive powers

- [FACT] State executive action is formally taken in the Governor's name under Article 166.
- [FACT] The Governor appoints the Chief Minister and, on the CM's advice, other ministers.
- [FACT] The Governor appoints the Advocate General under Article 165.
- [FACT] Constitutionally specified appointments include the State Election Commissioner, State Public Service Commission chair/members and district judges in consultation with the High Court under their respective provisions.
- [FACT] The Governor may seek information from the CM under Article 167.
- [FACT] The Governor may report under Article 356 that State government cannot be carried on according to the Constitution.
- [LIMIT] The Governor does not appoint High Court judges; the President appoints them after constitutionally required consultation.

Visual 11 - Appointment caution table

Office/body	Governor's role	Trap
Chief Minister	Appoints	Choice is conventional under clear majority, bounded under hung House
Other State ministers	Appoints on CM's advice	Not personal selection
Advocate General	Appoints	Must be qualified to be a High Court judge
State Election Commissioner	Appoints under Article 243K	Removal protection is separately structured

Office/body	Governor's role	Trap
SPSC chair/members	Appoints	Removal belongs to President under constitutional process
High Court judge	Consulted in appointment architecture	Governor does not appoint
District judge	Appoints in consultation with High Court	Judicial-independence constraint

B. Legislative powers

- [FACT] Article 168 makes the Governor a component of the State legislature.
- [FACT] Article 174 permits summoning, prorogation and dissolution of the Legislative Assembly, ordinarily on ministerial advice.
- [FACT] Article 175 permits addresses and messages to either House.
- [FACT] Article 176 requires a special address at the first session after a general election and the first session of each year.
- [FACT] Article 177 allows ministers and the Advocate General to speak and participate in either House and committees, but voting follows legislative membership.
- [FACT] Article 171 permits nomination of **one-sixth** of the Legislative Council in a bicameral State from persons with special knowledge or practical experience in specified fields.
- [FACT] The Governor does **not** nominate members to the Legislative Assembly under the present scheme.
- [FACT] Article 200 governs assent, withholding, return of a non-Money Bill and reservation for the President.
- [FACT] Article 213 governs ordinances.

Visual 12 - Legislative interface

State legislature

```

|
+-- Article 168: Governor + House(s)
+-- Article 171: Governor nominates 1/6 of Council
+-- Article 174: summon / prorogue / dissolve Assembly
+-- Article 175: address / messages
+-- Article 176: special address
+-- Article 200: Bill decision
+-- Article 213: ordinance when session condition permits

```

C. Financial powers

- [FACT] The Governor causes the annual financial statement to be laid before the State legislature under Article 202.
- [FACT] A demand for a grant cannot be made except on the Governor's recommendation under Article 203(3).
- [FACT] A Money Bill and specified financial Bills require the Governor's recommendation under Article 207.
- [FACT] The State Contingency Fund is placed at the Governor's disposal under Article 267(2), subject to law.
- [FACT] The Governor constitutes the State Finance Commission under Article 243-I.
- [ANALYSIS] These are formal gateways of responsible finance, not a personal gubernatorial budget.

D. Judicial and clemency powers

- [FACT] Article 161 empowers the Governor to grant pardon, reprieve, respite, remission, suspension or commutation for offences against laws relating to matters within State executive power, subject to the death-sentence and court-martial limits stated below.
- [FACT] The Governor cannot exercise clemency over court-martial sentences.
- [FACT] The Governor cannot pardon a death sentence, but may suspend, remit or commute it when the offence-law nexus lies within State executive power.
- [FACT] Article 233 makes appointment, posting and promotion of district judges a gubernatorial act in consultation with the High Court.
- [FACT] Article 234 makes recruitment of other judicial-service personnel a gubernatorial act under rules framed after consultation with the State Public Service Commission and High Court.

- [FACT] *Shamsher Singh (1974)* confirms that these formal acts are not a general domain of personal satisfaction.
- [LIMIT] Clemency is exercised on ministerial advice and remains open to limited judicial review for constitutionally recognised defects; it is not personal mercy.

E. University Chancellor and other statutory roles

- [FACT] The Constitution does not make the Governor the Chancellor of every State university.
- [FACT] A Chancellor or related university role arises, where it exists, under the relevant **State university statute**.
- [ANALYSIS] This distinction explains why university-law amendments can alter the role without amending Articles 153-167.
- [LIMIT] Models differ by State. Never universalise one State statute or a live office-holder dispute.

Visual 13 - Constitutional office versus statutory hat

Function	Source	Can State law redesign it?
Governor of State	Constitution	Not by ordinary State law
Assent under Article 200	Constitution	No
Chancellor of a State university	Relevant State statute	Yes, subject to constitutional limits
Visitor/chancellor selection role	Statute-specific	Yes

PRELIMS TRAP

University Chancellor status comes from State law, and the Governor does not appoint High Court judges.

MAINS USE

Identify the legal source, formal act, advice rule and limit for each power cluster. Classification prevents ceremonial, discretionary and statute-created functions from being confused.

MINI RECAP

A high-scoring answer classifies gubernatorial powers before asking whether advice or discretion controls each one.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: Governor powers are understood correctly only by matching each function to its legal source and advice rule.

Named evidence: Articles 154, 161, 168, 174-176, 200, 202-203, 207, 213, 233-234, 243-I, 243K, 316 and 356 distribute executive, legislative, financial, judicial and special functions.

Analysis: Classification reveals that most acts give constitutional form to ministerial government, while only textually recognised or necessarily implied situations permit bounded discretion.

Qualification: A university Chancellor role depends on State statute, and consultation in High Court appointments is not the same as appointing High Court judges.

CLOSING RECALL FLOW - GOVERNOR'S POWERS: COMPLETE CLASSIFICATION

START / CONCEPT: Governor's powers: complete classification
|
v
EXACT TERMS: executive powers · legislative powers · financial powers · Article 161 · statutory role
|
v
MECHANISM / ARGUMENT: Identify the legal source, formal act, advice rule and limit for each power cluster.
|
v
CONSEQUENCE / CONTRAST: Classification prevents ceremonial, discretionary and statute-created functions from being confused.
|
v
UPSC TRAP / ANSWER-USE: University Chancellor status comes from State law, and the Governor does not appoint High Court judges.
|
v
ANSWER-GRABBING FORMULATION: A high-scoring answer classifies gubernatorial powers before asking whether advice or discretion controls each one.

SESSION 6 - ARTICLE 163: AID, ADVICE AND THE NARROW FIELD OF DISCRETION

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 14 - The default-exception rule

DEFAULT

Governor acts on CM-led Council's aid and advice

|
v

EXCEPTION

Constitution expressly or by necessary implication requires permitted discretion

|
v

CONTROL

Discretion remains constitutional, reviewable at its limits and cannot become general political supervision

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Council's advice is the default and gubernatorial discretion is a narrow constitutional exception.

Technical definition: Article 163 combines aid and advice, a discretion carve-out, a finality clause and secrecy of ministerial advice, all bounded by Shamsher Singh (1974) and later review.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 163 creates limited exception, not a parallel political executive in Raj Bhavan.

MUST-WRITE KEYWORDS

- **Article 163**
- **aid and advice**
- **discretion**
- **Shamsher Singh (1974)**
- **finality clause**

How to use them: Frame the answer through Article 163; define aid and advice, connect discretion with Shamsher Singh (1974) to explain the mechanism, and use finality clause for the decisive comparison or qualification.

- [FACT] Article 163(1) establishes aid and advice, except insofar as the Constitution requires the Governor to act in discretion.

- [FACT] Article 163(2) contains a finality formulation concerning whether a matter is discretionary.
- [FACT] Article 163(3) bars judicial inquiry into whether, and if so what, advice ministers tendered.
- [FACT] Unlike Article 74 after the 42nd/44th Amendment scheme, Article 163 does not use an equivalent express textual command that all advice is binding.
- [LIMIT] That textual difference does **not** create a general personal discretion. *Shamsher Singh (1974)* and later cases keep discretion narrow.

Visual 15 - Express and situational discretion

Category	Illustrations	Control
Express/constitutionally anchored	Reserve Bill under Article 200; report under Article 356; special responsibilities where Constitution provides; UT administrator additional charge	Must remain within purpose
Situational/implicit	Choose CM in hung Assembly; require floor test on objective doubt; respond to ministry that has demonstrably lost confidence; consider dissolution/alternative	Temporary, evidence-based and House-centred
Not discretion	Routine policy disagreement; choosing ministers contrary to CM; summoning House for partisan strategy; deciding intra-party leadership	Ministerial advice/party and House processes govern

Core rule: Discretion fills a constitutional gap; it does not create a rival elected executive.

Special and tribal responsibilities: Article **371A(1)(b)** gives the Governor of Nagaland a special law-and-order responsibility, and Article **371H(a)** does so for Arunachal Pradesh; both use individual judgment after consultation with the Council of Ministers. The Sixth Schedule separately assigns specified Governor functions in autonomous tribal-area administration. These are exceptional constitutional texts, not a general discretion available in every State.

PRELIMS TRAP

The absence of Article 74's exact wording does not make all Governor advice optional.

MAINS USE

Routine powers follow advice; only express text or necessary constitutional implication opens a temporary discretionary route. Narrow discretion protects exceptional constitutional functions while preserving elected government.

MINI RECAP

Article 163 creates limited exception, not a parallel political executive in Raj Bhavan.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: Article 163 is a default-exception rule, not a freestanding domain of gubernatorial preference.

Named evidence: *Shamsher Singh (1974)* makes aid and advice the norm; the constitutional text and necessary implication identify the exceptional field.

Analysis: This structure preserves responsible government while allowing a neutral threshold decision where the incumbent ministry cannot logically settle its own claim to office or where the Constitution assigns individual judgment.

Qualification: Article 163(2)'s finality language does not immunise mala fides, jurisdictional error or an invented discretion from judicial review.

CLOSING RECALL FLOW - ARTICLE 163: AID, ADVICE AND THE NARROW FIELD OF DISCRETION

START / CONCEPT: Article 163: aid, advice and the narrow field of discretion

|

v

EXACT TERMS: Article 163 · aid and advice · discretion · Shamsher Singh (1974) · finality clause

|

v

MECHANISM / ARGUMENT: Routine powers follow advice; only express text or necessary constitutional implication opens a temporary discretionary route.

|

v

CONSEQUENCE / CONTRAST: Narrow discretion protects exceptional constitutional functions while preserving elected government.

|

v

UPSC TRAP / ANSWER-USE: The absence of Article 74's exact wording does not make all Governor advice optional.

|

v

ANSWER-GRABBING FORMULATION: Article 163 creates limited exception, not a parallel political executive in Raj Bhavan.

SESSION 7 - CASE-LAW CONTROL: PROPOSITION, SIGNIFICANCE AND LIMITATION

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

REQUIRED CASE MATRIX - HOLDING, CONTEXT AND LIMIT

Case	Context	Exact Governor proposition	Limit
<i>Shamsher Singh v. State of Punjab</i> (1974), seven judges	Termination of probationary subordinate judicial officers	President/Governor are formal heads ordinarily acting on advice; Article 234 action is not personal satisfaction	Constitutionally specified exceptions remain
<i>Hargovind Pant v. Raghukul Tilak</i> (1979)	Article 319(d) challenge to former SPSC member's appointment	Governor is an independent constitutional office, not employment under the Union	Appointment and pleasure still create a federal link
<i>S.R. Bommai v. Union of India</i> (1994), nine judges	Article 356 proclamations	Proclamation reviewable; House floor ordinarily tests majority; federalism is basic structure	Full emergency procedure belongs to Topic 14
<i>Rameshwar Prasad v. Union of India</i> (2006)	Bihar Assembly dissolved before meeting	Anticipated horse-trading was not objective material; dissolution unconstitutional	Assembly not restored after election process advanced
<i>B.P. Singhal v. Union of India</i> (2010)	Removal of Governors after Union change	Pleasure is not arbitrary, capricious, unreasonable or mala fide	No guaranteed five-year term or routine hearing
<i>Nabam Rebia v. Deputy Speaker</i> (2016)	Governor pre-poned Arunachal session and set Speaker-removal agenda	Article 174/175 powers normally advice-bound; Governor cannot enlarge discretion	Speaker-removal proposition later referred; Governor holding remains
<i>Shivraj Singh Chouhan v. Speaker</i> (2020)	Twenty-two Madhya Pradesh MLAs tendered resignations	Objective material can justify a prompt floor test; Governor does not decide majority	Does not authorise tests for mere factional dissent
<i>Subhash Desai v. Principal Secretary, Governor of Maharashtra</i> (2023)	Maharashtra party split and floor-test direction	Faction letters/intra-party dissent alone insufficient; Governor cannot arbitrate party leadership	Status quo not restored because CM resigned
<i>State of Punjab v. Principal Secretary to Governor</i> (2023)	Disputed sittings and delayed Bills	Valid sittings could not be doubted; Article 200 requires action; withholding links to return	Court did not choose the ultimate option

Visual 16 - Doctrine ladder

Shamsher Singh (1974)
 constitutional head; advice is the norm
 ↓
 S.R. Bommai (1994)
 Article 356 review + floor of House
 ↓
 Rameshwar Prasad (2006)
 apprehension/horse-trading claim cannot justify mala fide dissolution
 ↓
 B.P. Singhal (2010)
 pleasure survives; arbitrary removal does not
 ↓
 Nabam Rebia (2016)
 Article 174/175 discretion is narrow; ordinary advice controls
 ↓
 Subhash Desai (2023)
 objective material required; floor test cannot settle intra-party dispute

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Governor case law defines advice, pleasure, floor tests, dissolution and review through distinct propositions.

Technical definition: Shamsher Singh (1974), S.R. Bommai (1994), Rameshwar Prasad (2006), B.P. Singhal, Nabam Rebia (2016) and Subhash Desai (2023) create a bounded doctrinal sequence.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Cases earn marks only when each name is attached to its exact Governor proposition and factual limit.

MUST-WRITE KEYWORDS

- Shamsher Singh (1974)
- S.R. Bommai (1994)
- B.P. Singhal
- Nabam Rebia (2016)
- Subhash Desai (2023)

How to use them: Frame the answer through Shamsher Singh (1974); define S.R. Bommai (1994), connect B.P. Singhal with Nabam Rebia (2016) to explain the mechanism, and use Subhash Desai (2023) for the decisive comparison or qualification.

Shamsher Singh (1974) v. State of Punjab (1974)

- [FACT] A seven-judge Bench treated the President and Governor as constitutional heads who ordinarily exercise powers on the aid and advice of their Councils of Ministers.
- [ANALYSIS] The case supplies the default rule for every power table: formal vesting does not imply personal government.
- [LIMIT] Constitutionally recognised discretionary situations remain.

S.R. Bommai (1994) v. Union of India (1994)

- [FACT] Article 356 satisfaction is judicially reviewable.
- [FACT] A disputed legislative majority should ordinarily be tested on the floor of the House, not decided through subjective gubernatorial assessment.
- [FACT] Federalism is part of Basic Structure.
- [ANALYSIS] The case turns Raj Bhavan's report from an unreviewable political trigger into a reasoned constitutional input.
- [LIMIT] Full Article 356 procedure belongs to Polity 14; this package uses the Governor/floor-test propositions.

Rameshwar Prasad (2006) v. Union of India (2006)

- [FACT] Dissolution of the Bihar Assembly based on the Governor's report concerning anticipated horse-trading was held unconstitutional/mala fide.
- [ANALYSIS] Suspicion about future conduct cannot replace actual House processes and objective evidence.
- [LIMIT] The case does not make political instability irrelevant; it requires constitutionally probative material and proper testing.

B.P. Singhal v. Union of India (2010)

- [FACT] Article 156 pleasure allows removal before five years and does not require routine disclosure of reasons.
- [FACT] The power cannot be exercised arbitrarily, capriciously, unreasonably or mala fide.
- [FACT] If the challenger establishes a prima facie case of arbitrariness, the Union must disclose material justifying the removal.
- [LIMIT] The Court does not convert the five-year outer term into guaranteed tenure or require a removal inquiry.

Nabam Rebia (2016) v. Deputy Speaker (2016)

- [FACT] The Governor's powers to summon/prorogue and send messages are normally exercised on aid and advice; Article 163 does not authorise self-expanding discretion.
- [ANALYSIS] Article 174 cannot be used to take over legislative scheduling for a partisan end.
- [CURRENT/LIMIT] The *Nabam Rebia (2016)* question concerning a Speaker facing a removal notice while adjudicating disqualification was referred by *Subhash Desai (2023)* to a larger seven-judge Bench and remains unresolved according to the authoritative Core. Do not present that issue as finally settled.

Subhash Desai (2023) v. Principal Secretary, Governor of Maharashtra (2023)

- [FACT] A floor test requires **objective material** giving reason to believe that the incumbent government has lost House confidence.
- [FACT] Intra-party dissent, factional letters or apprehended instability are not by themselves sufficient material.
- [FACT] A Governor cannot enter the political arena or use a floor test to resolve an internal party dispute.
- [FACT] The Court did not restore the previous government because the Chief Minister resigned without facing the floor test.
- [LIMIT] The judgment did not disqualify members, restore a government or finally settle the referred *Nabam Rebia (2016)* Speaker-removal issue.
- [ANALYSIS] The floor test is a remedy for demonstrated constitutional doubt, not a device for manufacturing a change of government.

Visual 17 - Case-to-question router

Question signal	Primary case	What to write	Qualification
Ordinary advice	<i>Shamsher Singh (1974)</i>	Constitutional head, not personal executive	Narrow exceptions remain
Majority dispute/356	<i>S.R. Bommai (1994)</i>	Floor test + review	Use State context
Pre-emptive dissolution	<i>Rameshwar Prasad (2006)</i>	Apprehension is not objective proof	Facts still matter
Session/message discretion	<i>Nabam Rebia (2016)</i>	Article 174/175 usually advice-bound	Speaker-removal issue unresolved
Factional crisis	<i>Subhash Desai (2023)</i>	Objective material; no intra-party arbitration	No restoration due to CM resignation

PRELIMS TRAP

Subhash Desai (2023) did not restore the resigned government, and the referred Nabam Rebia (2016) issue remains unresolved.

MAINS USE

Match the challenged act to advice, objective material, House testing, removal or dissolution doctrine. The case line shifts contested gubernatorial action from subjective politics toward reasons, evidence and review.

MINI RECAP

Cases earn marks only when each name is attached to its exact Governor proposition and factual limit.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: Governor doctrine is a chain of context-specific holdings rather than one unlimited judicial formula.

Named evidence: Shamsher Singh controls advice; Hargovind Pant office status; B.P. Singhal removal; Bommai, Rameshwar Prasad, Shivraj Singh Chouhan and Subhash Desai confidence crises; Nabam Rebia legislative sessions.

Analysis: Together they move disputed political facts away from private gubernatorial assessment and toward objective material, the Assembly floor and reviewable reasons.

Qualification: Each holding remains bounded by its facts: a valid floor test is not a licence to settle party leadership, and review of removal does not create fixed tenure.

CLOSING RECALL FLOW - CASE-LAW CONTROL: PROPOSITION, SIGNIFICANCE AND LIMITATION

START / CONCEPT: Case-law control: proposition, significance and limitation

|
v

EXACT TERMS: Shamsher Singh (1974) • S.R. Bommai (1994) • B.P. Singhal • Nabam Rebia (2016) • Subhash Desai (2023)

|
v

MECHANISM / ARGUMENT: Match the challenged act to advice, objective material, House testing, removal or dissolution doctrine.

|
v

CONSEQUENCE / CONTRAST: The case line shifts contested gubernatorial action from subjective politics toward reasons, evidence and review.

|
v

UPSC TRAP / ANSWER-USE: Subhash Desai (2023) did not restore the resigned government, and the referred Nabam Rebia (2016) issue remains unresolved.

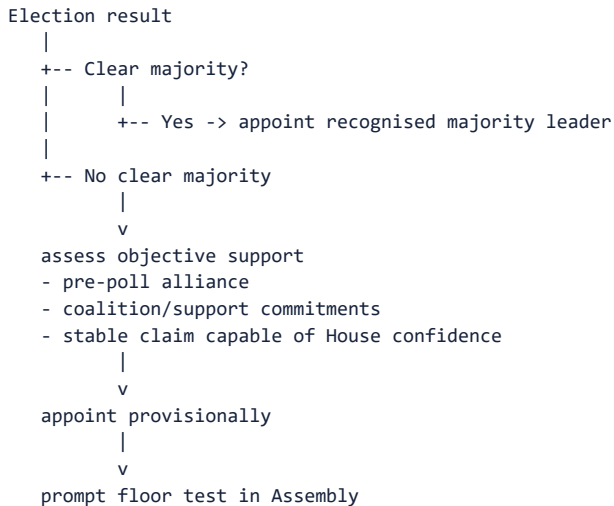
|
v

ANSWER-GRABBING FORMULATION: Cases earn marks only when each name is attached to its exact Governor proposition and factual limit.

SESSION 8 - CHIEF MINISTER APPOINTMENT AND GOVERNMENT FORMATION

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 18 - Appointment algorithm



DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Governor appoints the person most likely to command Legislative Assembly confidence as Chief Minister.

Technical definition: Article 164 appointment operates through clear-majority convention or bounded hung-House discretion, followed by an early floor test.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Government formation is a temporary selection judgment whose democratic validation occurs on the Assembly floor.

MUST-WRITE KEYWORDS

- **Article 164**
- **hung Assembly**
- **Chief Minister**
- **floor test**
- **B.R. Kapur**

How to use them: Frame the answer through Article 164; define hung Assembly, connect Chief Minister with floor test to explain the mechanism, and use B.R. Kapur for the decisive comparison or qualification.

- [FACT] Article 164(1) says the Chief Minister is appointed by the Governor.
- [FACT] Under a clear Assembly majority, constitutional convention leaves no free political choice: the majority leader is appointed.
- [ANALYSIS] In a hung Assembly, the Governor may identify the person most likely to command confidence, using objective support rather than ideological preference.
- [FACT] Majority need not be conclusively proved before appointment; survival authority comes from the Assembly floor.
- [LIMIT] Commission orders of preference are valuable neutral guides but are proposals/conventions, not an inflexible constitutional algorithm for every configuration.

Visual 19 - Appointment is not confidence

Stage	Actor	Constitutional meaning
Invitation	Governor	Temporary access to form ministry
Oath	Governor administers	Assumption of office
Floor test	Legislative Assembly	Democratic proof of confidence

Stage	Actor	Constitutional meaning
Continuing tenure	Assembly numbers	Real survival condition

Non-member Chief Minister

- [FACT] Article 164(4) permits a minister, including the CM, to remain without membership of the State legislature for no more than **six consecutive months**.
- [FACT] In a bicameral State, the CM may belong to either House.
- [LIMIT] The six-month window cures temporary non-membership, not an underlying constitutional disqualification. *B.R. Kapur v. State of Tamil Nadu* supplies the controlling caution.
- [LIMIT] There is no separate constitutional age qualification for the office of CM; ordinary legislative eligibility is relevant, generally 25 for Assembly and 30 for Council membership.

PRELIMS TRAP

The largest party has no automatic absolute claim, and an unqualified person cannot use the six-month rule.

MAINS USE

Invite the credible confidence claimant, require timely proof and avoid secret or partisan headcounts. The process enables government while keeping final legitimacy with elected representatives.

MINI RECAP

Government formation is a temporary selection judgment whose democratic validation occurs on the Assembly floor.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: Appointment of a Chief Minister in a hung Assembly is provisional constitutional facilitation.

Named evidence: Article 164(1), Sarkaria's preference principles, B.R. Kapur (2001) and S.R. Chaudhuri (2001) distinguish support assessment, legal eligibility and the six-month membership window.

Analysis: The Governor identifies a credible claimant only to enable an early House test; democratic title ultimately comes from confidence, not invitation chronology.

Qualification: No rigid invitation list can replace facts, but the six-month rule cannot cure disqualification or support repeated non-member reappointments.

CLOSING RECALL FLOW - CHIEF MINISTER APPOINTMENT AND GOVERNMENT FORMATION

START / CONCEPT: Chief Minister appointment and government formation

|
v

EXACT TERMS: Article 164 · hung Assembly · Chief Minister · floor test · B.R. Kapur

|
v

MECHANISM / ARGUMENT: Invite the credible confidence claimant, require timely proof and avoid secret or partisan headcounts.

|
v

CONSEQUENCE / CONTRAST: The process enables government while keeping final legitimacy with elected representatives.

|
v

UPSC TRAP / ANSWER-USE: The largest party has no automatic absolute claim, and an unqualified person cannot use the six-month rule.

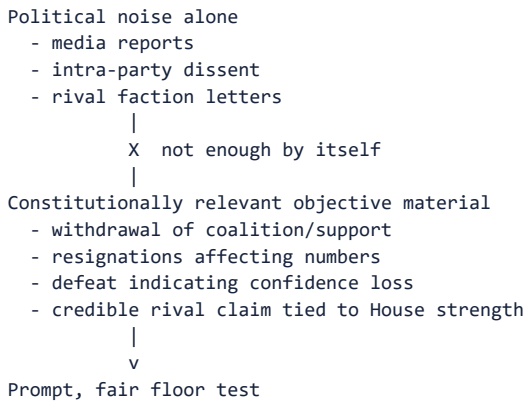
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v

ANSWER-GRABBING FORMULATION: Government formation is a temporary selection judgment whose democratic validation occurs on the Assembly floor.

SESSION 9 - FLOOR TEST: TRIGGER, PROCESS AND LIMITS

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 20 - Objective-material threshold



DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A floor test publicly determines whether a ministry retains Legislative Assembly confidence.

Technical definition: S.R. Bommai (1994) and Subhash Desai (2023) require objective material for intervention and reserve intra-party leadership disputes for party processes.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The floor test is the constitutional cure for demonstrated doubt, not a device for manufacturing instability.

MUST-WRITE KEYWORDS

- floor test
- objective material
- Assembly confidence
- S.R. Bommai (1994)
- Subhash Desai (2023)

How to use them: Frame the answer through floor test; define objective material, connect Assembly confidence with S.R. Bommai (1994) to explain the mechanism, and use Subhash Desai (2023) for the decisive comparison or qualification.

- [FACT] *S.R. Bommai (1994)* makes the House floor the ordinary forum for testing a disputed majority.
- [FACT] *Subhash Desai (2023)* requires objective material and rejects use of a floor test to resolve an internal party dispute.
- [ANALYSIS] The Governor may initiate a test only to clarify Assembly confidence, not party legitimacy, whip validity or factional control.
- [LIMIT] The Speaker's Tenth Schedule proceedings and the Governor's confidence inquiry are distinct legal tracks. One cannot predetermine the other by partisan timing.

Visual 21 - Fair-test checklist

Requirement	Why it matters
Objective trigger	Prevents speculative intervention
Reasonable promptness	Stops engineered delay or surprise
Assembly forum	Lets elected members decide confidence
Neutral procedure	Avoids Raj Bhavan becoming a political participant

Requirement	Why it matters
Separate defection track	Preserves Speaker/court jurisdiction
Judicial review at limits	Checks mala fides and irrelevant material

PRELIMS TRAP

Factional letters or political disagreement alone do not automatically justify a floor test.

MAINS USE

Relevant evidence creates doubt, the House is convened promptly and members vote under judicially reviewable procedure. House-centred verification replaces subjective Raj Bhavan assessment with democratic proof.

MINI RECAP

The floor test is the constitutional cure for demonstrated doubt, not a device for manufacturing instability.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: A floor test is a truth-finding procedure for a genuine confidence doubt, not a political destabilisation tool.

Named evidence: Bommai locates majority on the floor; Shivraj Singh Chouhan (2020) upheld a prompt test on objective resignation material; Subhash Desai (2023) rejected factional dissent alone.

Analysis: Public voting in the Assembly reduces information asymmetry and prevents the Governor from becoming the final counter of private letters.

Qualification: The test does not decide disqualification, whip validity, party leadership or symbol recognition, which belong to other constitutional and statutory forums.

CLOSING RECALL FLOW - FLOOR TEST: TRIGGER, PROCESS AND LIMITS

START / CONCEPT: Floor test: trigger, process and limits

|
v

EXACT TERMS: floor test · objective material · Assembly confidence · S.R. Bommai (1994) · Subhash Desai (2023)

|
v

MECHANISM / ARGUMENT: Relevant evidence creates doubt, the House is convened promptly and members vote under judicially reviewable procedure.

|
v

CONSEQUENCE / CONTRAST: House-centred verification replaces subjective Raj Bhavan assessment with democratic proof.

|
v

UPSC TRAP / ANSWER-USE: Factional letters or political disagreement alone do not automatically justify a floor test.

|
v

ANSWER-GRABBING FORMULATION: The floor test is the constitutional cure for demonstrated doubt, not a device for manufacturing instability.

SESSION 10 - DISMISSAL, DISSOLUTION AND CARETAKER GOVERNMENT

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 22 - Loss-of-confidence decision matrix

Situation	Constitutionally proper response
CM retains majority	Governor cannot dismiss
Majority genuinely disputed	Floor test
Ministry loses test and resigns	Explore viable alternative
Ministry loses test and refuses to resign	Dismissal may follow
No viable alternative	Dissolution/election route
Assembly dissolved/election pending	Incumbent may continue as caretaker by convention

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Dismissal ends a ministry, dissolution ends the Assembly, and caretaker convention bridges the transition.

Technical definition: Articles 164 and 174 operate with Assembly confidence, alternative-government feasibility and Rameshwar Prasad (2006) limits on speculative dissolution.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Dismissal and dissolution are distinct constitutional consequences and neither should precede a proper confidence inquiry.

MUST-WRITE KEYWORDS

- **dismissal**
- **dissolution**
- **caretaker government**
- **Article 174**
- **Rameshwar Prasad (2006)**

How to use them: Frame the answer through dismissal; define dissolution, connect caretaker government with Article 174 to explain the mechanism, and use Rameshwar Prasad (2006) for the decisive comparison or qualification.

- [FACT] "Governor's pleasure" in Article 164 does not authorise dismissal of a CM who retains Assembly confidence.
- [ANALYSIS] Individual ministerial pleasure is operationally mediated by the CM; the Governor does not personally manage the team.
- [ANALYSIS] A dissolution request from a defeated or minority ministry may be declined if a demonstrably viable alternative government exists.
- [LIMIT] Dissolution is not a punishment for political disagreement. It is a route when representative government cannot otherwise be formed.
- [FACT] The Constitution does not contain a complete separately titled caretaker-government code.
- [ANALYSIS] Caretaker convention supports continuity while counselling restraint on major irreversible policy, appointments and commitments unless urgency or necessity requires action.

Visual 23 - Caretaker convention

```

Outgoing ministry continues
|
+-- essential administration
+-- security and urgent finance
+-- implementation already committed
|
X-- avoid avoidable irreversible policy
X-- avoid partisan appointments
X-- avoid binding successor without necessity

```

PRELIMS TRAP

A Governor cannot dissolve merely on anticipated horse-trading or treat caretaker government as full fresh mandate.

MAINS USE

After demonstrated confidence loss, resignation or dismissal follows; dissolution is considered only after testing viable alternatives. The sequence protects continuity and prevents pre-emptive destruction of a representative House.

MINI RECAP

Dismissal and dissolution are distinct constitutional consequences and neither should precede a proper confidence inquiry.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: Dismissal and dissolution are end-stage responses after confidence and viable alternatives are tested.

Named evidence: Rameshwar Prasad (2006) invalidated Bihar's pre-emptive dissolution based on anticipated horse-trading, while Article 164 responsibility keeps dismissal tied to demonstrated loss.

Analysis: Exploring an alternative ministry protects the electoral mandate; a caretaker convention maintains essential continuity until a successor or election.

Qualification: Caretaker restraint is convention rather than a complete constitutional code, so urgent and legally required decisions may still be taken with recorded justification.

CLOSING RECALL FLOW - DISMISSAL, DISSOLUTION AND CARETAKER GOVERNMENT

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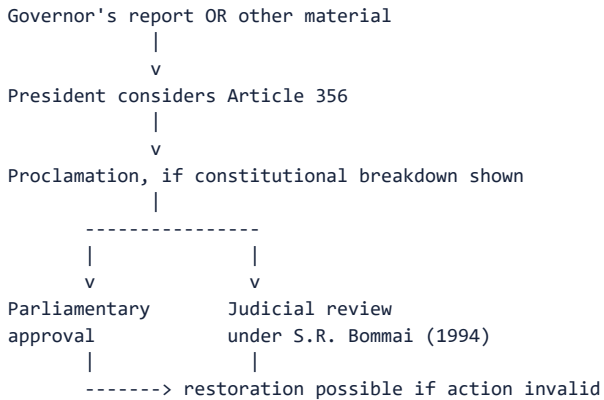
START / CONCEPT: Dismissal, dissolution and caretaker government
|
v
EXACT TERMS: dismissal · dissolution · caretaker government · Article 174 · Rameshwar Prasad (2006)
|
v
MECHANISM / ARGUMENT: After demonstrated confidence loss, resignation or dismissal follows;
dissolution is considered only after testing viable alternatives.
|
v
CONSEQUENCE / CONTRAST: The sequence protects continuity and prevents pre-emptive destruction of a
representative House.
|
v
UPSC TRAP / ANSWER-USE: A Governor cannot dissolve merely on anticipated horse-trading or treat
caretaker government as full fresh mandate.
|
v
ANSWER-GRABBING FORMULATION: Dismissal and dissolution are distinct constitutional consequences and
neither should precede a proper confidence inquiry.

```

SESSION 11 - ARTICLE 356 RECOMMENDATION AND THE FEDERAL FIREWALL

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 24 - From report to constitutional control



DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A Governor may report constitutional breakdown, but the President and Parliament control the Article 356 proclamation.

Technical definition: The report is evidentiary input reviewed under S.R. Bommai (1994) for relevance, mala fides and constitutional purpose; Article 356 also permits action otherwise than on a report.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Raj Bhavan reports trigger scrutiny, not an unreviewable power to dismiss State government.

MUST-WRITE KEYWORDS

- **Article 356**
- **Governor report**
- **constitutional breakdown**
- **S.R. Bommai (1994)**
- **federalism**

How to use them: Frame the answer through Article 356; define Governor report, connect constitutional breakdown with S.R. Bommai (1994) to explain the mechanism, and use federalism for the decisive comparison or qualification.

- [FACT] Article 356 may operate on a Governor's report **or otherwise**; a report is important but not textually indispensable.
- [FACT] The report must concern inability to carry on State government according to the Constitution, not mere maladministration or political inconvenience.
- [FACT] Where the issue is legislative majority, a floor test ordinarily displaces subjective assessment.
- [FACT] *S.R. Bommai (1994)* permits review of the proclamation's material and constitutional relevance.
- [FACT] *Rameshwar Prasad (2006)* rejects anticipatory dissolution based on unsupported apprehension.
- [ANALYSIS] The Governor is an information bridge, not the final judge of State democracy.
- [LIMIT] Article 356 is a last-resort remedy. Full approval, duration and consequence rules are in Polity 14.

PRELIMS TRAP

Do not miss this limiting distinction: test majority doubt on the House floor before invoking Article 356.

MAINS USE

Reasoned material reaches the President, proclamation faces parliamentary approval and courts may review the basis. The firewall protects State autonomy while retaining an emergency response to genuine breakdown.

MINI RECAP

Raj Bhavan reports trigger scrutiny, not an unreviewable power to dismiss State government.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: A Governor's Article 356 report is evidence for presidential action, not a self-executing proclamation.

Named evidence: Article 356 permits action on a Governor's report or otherwise, and S.R. Bommai (1994) subjects the proclamation and its material to judicial review.

Analysis: The report can warn of constitutional breakdown, but floor testing ordinarily resolves majority disputes and federalism raises the cost of partisan recommendations.

Qualification: Bad administration or policy disagreement is not by itself constitutional breakdown; detailed proclamation duration and parliamentary control remain owned by Topic 14.

CLOSING RECALL FLOW - ARTICLE 356 RECOMMENDATION AND THE FEDERAL FIREWALL

START / CONCEPT: Article 356 recommendation and the federal firewall

|

v

EXACT TERMS: Article 356 · Governor report · constitutional breakdown · S.R. Bommai (1994) · federalism

|

v

MECHANISM / ARGUMENT: Reasoned material reaches the President, proclamation faces parliamentary approval and courts may review the basis.

|

v

CONSEQUENCE / CONTRAST: The firewall protects State autonomy while retaining an emergency response to genuine breakdown.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: test majority doubt on the House floor before invoking Article 356.

|

v

ANSWER-GRABBING FORMULATION: Raj Bhavan reports trigger scrutiny, not an unreviewable power to dismiss State government.

SESSION 12 - ARTICLES 168, 171 AND 174-176: GOVERNOR INSIDE THE LEGISLATIVE PROCESS

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 25 - Legislature map

Article	Governor's relation	Key caution
168	Component of State legislature	Not a member of either House
171	Nominates one-sixth of Legislative Council	Never Assembly nomination
174	Summons, prorogues, dissolves Assembly	Normally advice-bound
175	Addresses and sends messages	Not a general power to direct legislative outcomes
176	Special address	First session after election and first each year

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Governor is a component of the State legislature and performs specified session, nomination, address and message functions.

Technical definition: Articles 168, 171 and 174-176 place the Governor in legislative architecture without making the office-holder a member of either House.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Governor participates constitutionally in lawmaking while remaining outside legislative membership.

MUST-WRITE KEYWORDS

- Article 168
- Article 171
- Article 174
- Article 175
- Article 176

How to use them: Frame the answer through Article 168; define Article 171, connect Article 174 with Article 175 to explain the mechanism, and use Article 176 for the decisive comparison or qualification.

Legislative Council nominations

- [FACT] The Governor nominates one-sixth of Council members from persons with special knowledge or practical experience in literature, science, art, cooperative movement and social service.
- [LIMIT] The nomination power exists only where the State has a Legislative Council.
- [FACT] The Governor no longer has a general power to nominate an Anglo-Indian member to a Legislative Assembly under the current constitutional scheme.

Sessions and addresses

- [FACT] Article 174 requires no more than six months between the last sitting of one session and the first sitting of the next.
- [FACT] Prorogation ends a session; dissolution ends the life of the Assembly, not the permanent Council.
- [FACT] Under *Nabam Rebia (2016)*, Article 174/175 powers are normally exercised on ministerial advice.

PRELIMS TRAP

Do not miss this limiting distinction: the Governor nominates no Assembly member and ordinarily follows session advice.

MAINS USE

The Governor convenes and addresses Houses, sends messages and nominates one-sixth of a Legislative Council where one exists. These acts maintain institutional continuity and communication under responsible-government conventions.

MINI RECAP

The Governor participates constitutionally in lawmaking while remaining outside legislative membership.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: The Governor participates in State legislation without becoming a member of either House.

Named evidence: Articles 168, 171, 174-177 make the Governor a component of the legislature, provide Council nominations, sessions, addresses, messages and minister/Advocate-General participation.

Analysis: These provisions connect responsible executive leadership with legislative business, while *Nabam Rebia* keeps summoning and agenda manipulation ordinarily advice-bound.

Qualification: Article 177 permits participation but voting depends on House membership; Article 174's six-month ceiling does not authorise partisan session design.

CLOSING RECALL FLOW - ARTICLES 168, 171 AND 174-176: GOVERNOR INSIDE THE LEGISLATIVE PROCESS

START / CONCEPT: Articles 168, 171 and 174-176: Governor inside the legislative process
|
v
EXACT TERMS: Article 168 · Article 171 · Article 174 · Article 175 · Article 176
|
v
MECHANISM / ARGUMENT: The Governor convenes and addresses Houses, sends messages and nominates one-sixth of a Legislative Council where one exists.
|
v
CONSEQUENCE / CONTRAST: These acts maintain institutional continuity and communication under responsible-government conventions.
|
v
UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: the Governor nominates no Assembly member and ordinarily follows session advice.
|
v
ANSWER-GRABBING FORMULATION: The Governor participates constitutionally in lawmaking while remaining outside legislative membership.

SESSION 13 - ARTICLE 200: ASSENT, WITHHOLDING, RETURN AND RESERVATION

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 26 - Article 200 decision tree

```
Bill presented to Governor
|
+-- Assent -----> becomes law
|
+-- Reserve for President -----> Article 201
|
+-- Withhold + return comments ---> non-Money Bill only
                                   |
                                   v
                               House(s) reconsider
```

First proviso = restriction/implementation of withholding, not a fourth independent constitutional option.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 200 gives the Governor constitutionally defined options when a State Bill is presented.

Technical definition: Under the 2025 Article 143 opinion, the Governor has three routes: assent; reserve; or withhold and return a non-Money Bill with comments. The second proviso mandates reservation where the Bill endangers the High Court's constitutional position.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 200 is a decision gateway, not authority to invent a permanent pocket veto.

MUST-WRITE KEYWORDS

- Article 200
- assent
- withhold
- return
- reserve for President

How to use them: Frame the answer through Article 200; define assent, connect withhold with return to explain the mechanism, and use reserve for President for the decisive comparison or qualification.

- [FACT] Article 200 applies when a Bill passed by the State legislature is presented to the Governor.
- [FACT] Conclusion 165.1 of the 2025 Article 143 opinion identifies three options: assent; reserve; or withhold and return a **non-Money Bill** with comments.
- [FACT] A Money Bill cannot be returned under the first proviso.
- [FACT] The first proviso restricts and implements the withholding route rather than creating a fourth independent option.
- [LIMIT] Do not merge this direct return route with Article 201's reserved-Bill route.

Mandatory reservation for High Court protection

- [FACT] The second proviso to Article 200 requires reservation where, in the Governor's opinion, the Bill would so derogate from High Court powers as to endanger the position which the High Court is designed by the Constitution to fill.
- [ANALYSIS] This is an institutional-independence safeguard, not a general power to reserve every unpopular Bill.

Visual 27 - Assent choices and democratic cost

Route	Constitutional function	Limit after 2025 opinion
Assent	Completes legislation	Governor supplies assent personally in constitutional form
Reserve	Sends Bill to Article 201	Mandatory in High-Court-endangering case; otherwise purpose-bound
Withhold and return	Opens reconsideration dialogue	Non-Money Bill only; one combined route with comments
Inaction	No completed constitutional choice	Glaring prolonged, unexplained and indefinite delay permits limited mandamus

PRELIMS TRAP

A Money Bill cannot be returned, and mandatory High Court-protection reservation is not optional.

MAINS USE

Bill type and constitutional concern determine the available option; reconsideration prevents a second return of the same Bill. The gateway links State legislation with constitutional scrutiny and possible presidential consideration.

MINI RECAP

Article 200 is a decision gateway, not authority to invent a permanent pocket veto.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: Article 200 is a constitutional decision gate, not a personal pocket veto.

Named evidence: The 2025 Article 143 opinion reads three options: assent; reserve; or withhold and return a non-Money Bill with comments, while the second proviso mandates reservation of a High-Court-endangering Bill.

Analysis: The combined withholding-return route preserves legislative reconsideration, and reservation protects specified constitutional interests without allowing indefinite silence.

Qualification: The opinion treats choice among the three routes as discretionary, but bars merits review only after a decision; prolonged, unexplained and indefinite inaction remains open to limited mandamus.

CLOSING RECALL FLOW - ARTICLE 200: ASSENT, WITHHOLDING, RETURN AND RESERVATION

START / CONCEPT: Article 200: assent, withholding, return and reservation
|
v
EXACT TERMS: Article 200 · assent · withhold · return · reserve for President
|
v
MECHANISM / ARGUMENT: Bill type and constitutional concern determine the available option; reconsideration prevents a second return of the same Bill.
|
v
CONSEQUENCE / CONTRAST: The gateway links State legislation with constitutional scrutiny and possible presidential consideration.
|
v
UPSC TRAP / ANSWER-USE: A Money Bill cannot be returned, and mandatory High Court-protection reservation is not optional.
|
v
ANSWER-GRABBING FORMULATION: Article 200 is a decision gateway, not authority to invent a permanent pocket veto.

SESSION 14 - ARTICLE 201 AND THE PRESIDENT ON RESERVED STATE BILLS

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 28 - Reserved-Bill route

Governor reserves Bill
|
v
President under Article 201
- assent
- withhold assent
- for non-Money Bill, direct return through Governor
|
v
State legislature reconsiders within constitutional route
|
v
Repassed Bill returns for presidential consideration
|
v
No Article 200-style duty compelling presidential assent

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 201 governs presidential action after a Governor reserves a State Bill.

Technical definition: The President may assent or withhold and may direct return of a non-Money Bill through the Governor; repassage does not compel presidential assent.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Reservation transfers the decision to the President and changes the repassage consequence.

MUST-WRITE KEYWORDS

- Article 201
- reserved Bill
- President
- reconsideration

How to use them: Frame the answer through Article 201; define reserved Bill, connect President with reconsideration to explain the mechanism, and close with the decisive comparison or qualification.

- [FACT] Under Article 201, the President may assent or withhold assent to a reserved Bill.

- [FACT] For a non-Money Bill, the President may direct the Governor to return it to the State legislature for reconsideration.
- [FACT] The President is **not obliged to assent** merely because the State legislature re-passes a reserved Bill.
- [ANALYSIS] Article 201 therefore supplies a stronger central gate than the direct Article 200 return loop.
- [LIMIT] Prior presidential sanction and post-passage reservation are different constitutional mechanisms.

PRELIMS TRAP

Do not miss this limiting distinction: article 111's mandatory assent after ordinary-Bill repassage has no identical Article 201 counterpart.

MAINS USE

The President chooses an available option, and any directed reconsideration returns through the Governor to the House. The mechanism protects Union or constitutional interests while creating a significant federal checkpoint.

MINI RECAP

Reservation transfers the decision to the President and changes the repassage consequence.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: Article 201 creates a distinct presidential stage rather than a second Article 200 loop.

Named evidence: The President may assent or withhold; for a non-Money Bill the President may direct return through the Governor, after which the State Houses have six months to reconsider.

Analysis: Reservation introduces Union-level constitutional scrutiny while preserving a further legislative response for non-Money Bills.

Qualification: Re-passage does not compel presidential assent, and the 2025 opinion rejects both a court-made deadline and pre-enactment merits adjudication of the Bill.

CLOSING RECALL FLOW - ARTICLE 201 AND THE PRESIDENT ON RESERVED STATE BILLS

START / CONCEPT: Article 201 and the President on reserved State Bills

|

v

EXACT TERMS: Article 201 • reserved Bill • President • reconsideration

|

v

MECHANISM / ARGUMENT: The President chooses an available option, and any directed reconsideration returns through the Governor to the House.

|

v

CONSEQUENCE / CONTRAST: The mechanism protects Union or constitutional interests while creating a significant federal checkpoint.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: article 111's mandatory assent after ordinary-Bill repassage has no identical Article 201 counterpart.

|

v

ANSWER-GRABBING FORMULATION: Reservation transfers the decision to the President and changes the repassage consequence.

SESSION 15 - ASSENT DOCTRINE AFTER PUNJAB, TAMIL NADU AND THE 2025 ARTICLE 143 OPINION

VISUAL FIRST - THE PRECISE DOCTRINAL SEQUENCE

10 Nov 2023 - State of Punjab
no indefinite inaction; withholding links to return under first proviso
|
v
8 Apr 2025 - State of Tamil Nadu, 2025 INSC 481
second-round reservations set aside; general timelines prescribed;
Article 142 deemed assent granted to ten re-passed Bills on the facts
|
v
20 Nov 2025 - Special Reference No. 1 of 2025, 2025 INSC 1333
five-judge advisory opinion:
three Article 200 options; Governor chooses in discretion;
no merits review, rigid judicial clock or deemed assent;
limited mandamus for glaring prolonged, unexplained and indefinite inaction

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Current assent doctrine distinguishes a duty to decide from judicial power to dictate the decision or invent assent.

Technical definition: The November 2025 Article 143 opinion expressly declared the April judgment's general timeline and deemed-assent reasoning erroneous, while retaining limited jurisdiction over prolonged constitutional non-performance.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 200 now combines decisional discretion with a duty against evasive inaction: courts may require movement, but cannot supply assent.

MUST-WRITE KEYWORDS

- State of Punjab (2023)
- State of Tamil Nadu (2025)
- 2025 INSC 1333
- three constitutional options
- limited mandamus
- no deemed assent

EXACT HOLDINGS AND CONTEXT

Authority	Context	Exact exam-safe holding
<i>State of Punjab v. Principal Secretary to the Governor</i> (2023)	Governor questioned reconvened sittings and delayed four Bills	Valid sittings could not be doubted; Bills could not remain pending indefinitely; withholding had to be read with return under the first proviso
<i>State of Tamil Nadu v. Governor of Tamil Nadu</i> (8 Apr 2025), 2025 INSC 481	Ten Bills were withheld, re-passed and then reserved	Second-round reservations were set aside; the Court prescribed general timelines and deemed assent under Article 142 on the exceptional facts
<i>In re: Assent, Withholding or Reservation of Bills</i> (20 Nov 2025), 2025 INSC 1333	Presidential Reference under Article 143	Three Article 200 options; Governor not bound by Cabinet advice for the choice; decision merits not reviewable before enactment; no rigid court-made timelines or deemed assent; limited mandamus for glaring prolonged inaction

CURRENT RELATIONSHIP - DO NOT OVERSTATE

- [FACT] The five-judge opinion expressly called the Tamil Nadu judgment's general timeline paragraphs and its deemed-assent route erroneous.
- [FACT] An Article 143 opinion is advisory; it was not an appeal in the Tamil Nadu case and did not set aside the inter partes relief already granted to the ten Bills.

- [ANALYSIS] For present answer-writing, use the later opinion as the Supreme Court's authoritative advisory interpretation of Articles 200-201, while describing the April relief as case-specific and not as a continuing automatic-assent formula.
- [LIMIT] Say "**disapproved or qualified the general propositions**", not "**formally overruled the Tamil Nadu judgment.**"

PRELIMS TRAP

The present rule is neither a fixed three-month clock nor complete non-justiciability. A chosen option is not reviewed on merits before enactment, but glaring prolonged, unexplained and indefinite inaction can attract a limited direction to act.

MAINS USE

Use the sequence to balance democratic expedition, gubernatorial discretion, federal scrutiny, separation of powers and judicial non-substitution.

MINI RECAP

Punjab rejects indefinite silence; Tamil Nadu supplied exceptional timelines and deemed relief; the later five-judge opinion rejects those general remedies but preserves limited mandamus against constitutional paralysis.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: Current assent doctrine requires separating binding case relief from a later advisory constitutional interpretation.

Named evidence: Punjab (2023) required action and linked withholding to return; Tamil Nadu (8 April 2025) prescribed timelines and deemed assent to ten re-passed Bills; the five-judge Article 143 opinion (20 November 2025) declared the general timeline and deemed-assent reasoning erroneous.

Analysis: The later opinion now supplies the Court's authoritative advisory answers: three options, Article 200 discretion, no merits review, no rigid clock or deemed assent, but limited mandamus against glaring prolonged inaction.

Qualification: The advisory opinion did not appellate-set aside Tamil Nadu's inter partes relief; write that it disapproved the general propositions, not that it formally overruled the judgment.

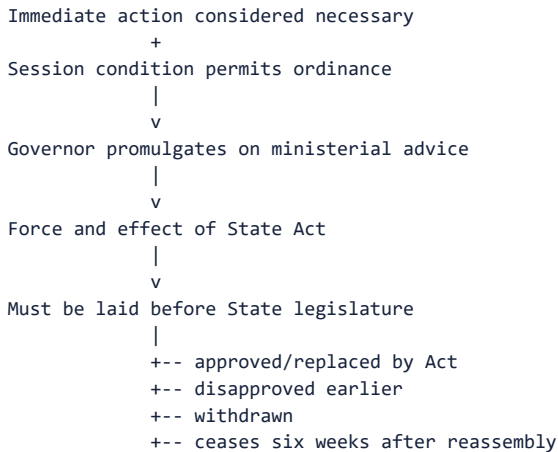
CLOSING RECALL FLOW - CURRENT ASSENT DOCTRINE

Bill presented -> Governor must choose a constitutional route
 -> no personal pocket veto
 -> no court-created fixed clock
 -> no deemed assent
 -> limited mandamus only for glaring prolonged inaction

SESSION 16 - ARTICLE 213 ORDINANCES: EMERGENCY BRIDGE, NOT PARALLEL LEGISLATURE

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 31 - Ordinance life cycle



DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A Governor's ordinance temporarily addresses immediate legislative need when the required House or Houses are not in session.

Technical definition: Article 213 gives Act-like force subject to legislative competence, presidential-instruction cases, laying and six-week expiry after reassembly.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The ordinance is a temporary constitutional bridge whose legitimacy depends on returning lawmaking to the legislature.

MUST-WRITE KEYWORDS

- **Article 213**
- **ordinance**
- **six weeks**
- **legislative competence**
- **presidential instructions**

How to use them: Frame the answer through Article 213; define ordinance, connect six weeks with legislative competence to explain the mechanism, and use presidential instructions for the decisive comparison or qualification.

- [FACT] Article 213 permits an ordinance when the Legislative Assembly is not in session; in a bicameral State, the prohibition applies when both Houses are in session.
- [FACT] The Governor must be satisfied that circumstances require immediate action, but the power operates through responsible government, not personal law-making.
- [FACT] An ordinance has the same force and effect as a State Act, subject to legislative competence and constitutional limits.
- [FACT] It must be laid before the legislature and ceases six weeks after reassembly; where Houses reassemble on different dates, the later date controls the six-week period.
- [FACT] It may cease earlier through disapproval or be withdrawn.
- [FACT] Presidential instructions are required in constitutionally specified cases analogous to prior sanction, reservation or invalidity without presidential assent.

Re-promulgation

- [FACT] *D.C. Wadhwa (1986) v. State of Bihar (1987)* characterised routine serial re-promulgation as a **fraud on the Constitution**.
- [FACT] *Krishna Kumar Singh (2017) v. State of Bihar (2017)*, seven judges, 5:2, reaffirmed legislative supremacy, held laying mandatory and treated satisfaction as reviewable at constitutional limits.

- [FACT] Rights and liabilities created by a lapsed ordinance do not automatically survive in every case.
- [ANALYSIS] Re-promulgation replaces legislative deliberation with executive repetition and is therefore unconstitutional when used as a regular governing method.
- [LIMIT] The ordinance power itself is valid; urgency may justify it. The vice lies in bypass, not in every promulgation.

Visual 32 - Ordinance validity test

Question	If answer is weak, constitutional risk rises
Was the session condition met?	Invalid use of Article 213
Was immediate action genuinely required?	Review for irrelevant/mala fide material
Was the subject within State competence?	Legislative incompetence
Were presidential instructions required?	Procedural invalidity
Was it laid promptly?	<i>Krishna Kumar Singh (2017)</i> violation
Is it being serially reissued?	<i>Wadhwa</i> fraud-on-Constitution concern

PRELIMS TRAP

The Governor cannot issue an ordinance whenever the Assembly is sitting or on a subject outside State legislative competence.

MAINS USE

Ministerial advice and immediate necessity produce an ordinance, which must be laid and either approved or allowed to lapse. The device preserves continuity without permanently bypassing representative legislation.

MINI RECAP

The ordinance is a temporary constitutional bridge whose legitimacy depends on returning lawmaking to the legislature.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: Article 213 legitimises urgent temporary law only by requiring a return to legislative control.

Named evidence: The session condition, immediate necessity, presidential-instruction proviso, laying duty and six-week expiry operate with D.C. Wadhwa and Krishna Kumar Singh.

Analysis: These safeguards permit continuity between sittings while preventing the executive from converting temporary ordinances into a parallel statute book.

Qualification: A fresh ordinance is not automatically invalid where genuinely new urgency exists, but routine re-promulgation to avoid the House is a constitutional fraud.

CLOSING RECALL FLOW - ARTICLE 213 ORDINANCES: EMERGENCY BRIDGE, NOT PARALLEL LEGISLATURE

START / CONCEPT: Article 213 ordinances: emergency bridge, not parallel legislature



EXACT TERMS: Article 213 · ordinance · six weeks · legislative competence · presidential instructions



MECHANISM / ARGUMENT: Ministerial advice and immediate necessity produce an ordinance, which must be laid and either approved or allowed to lapse.



CONSEQUENCE / CONTRAST: The device preserves continuity without permanently bypassing representative legislation.



UPSC TRAP / ANSWER-USE: The Governor cannot issue an ordinance whenever the Assembly is sitting or on a subject outside State legislative competence.



ANSWER-GRABBING FORMULATION: The ordinance is a temporary constitutional bridge whose legitimacy depends on returning lawmaking to the legislature.

SESSION 17 - ARTICLE 161 COMPARED WITH ARTICLE 72

VISUAL FIRST - FIELD, SENTENCE AND COURT-MARTIAL TEST

Dimension	President - Article 72	Governor - Article 161
Offence-law field	Union executive field	State executive field
Court-martial punishment	All clemency forms available	No jurisdiction
Death sentence	May pardon, reprieve, respite, remit, suspend or commute every death sentence	Cannot pardon; may suspend, remit or commute only where the offence lies in the State field
Advice	Union Council of Ministers	State Council of Ministers
Review	Limited constitutional review	Same broad grounds of limited review

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Governor has all six clemency forms for State-field offences generally, but cannot pardon a death sentence and has no court-martial jurisdiction.

Technical definition: Article 161 expressly authorises pardons, reprieves, respites, remissions, suspension and commutation for offences against laws relating to matters within State executive power. The death-sentence exception is exam-critical: only the President may pardon a death sentence; the Governor may suspend, remit or commute it within the State field.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 161 gives all six clemency forms for State-field offences generally, but a Governor cannot pardon a death sentence; within that field, the Governor may suspend, remit or commute it.

MUST-WRITE KEYWORDS

- offence-law nexus
- State executive field
- court martial
- Maru Ram (1980)
- Epuru Sudhakar (2006)

OPERATING RULE

- [FACT] Article 161 contains all six clemency limbs: pardon, reprieve, respite, remission, suspension and commutation.
- [FACT] A Governor cannot pardon a death sentence, but may suspend, remit or commute it when the offence is against a law relating to a matter within State executive power.
- [FACT] Article 161 contains no court-martial limb; Article 72 does.
- [FACT] Article 72(1)(c) empowers the President to grant clemency, including pardon, in every death-sentence case; Article 72(3) preserves State-law power to suspend, remit or commute a death sentence.
- [FACT] *Maru Ram v. Union of India* (1980) holds that the appropriate government exercises Articles 72/161 through binding ministerial advice; clemency is not personal mercy.
- [FACT] *Epuru Sudhakar v. Government of Andhra Pradesh* (2006) permits review for mala fides, arbitrariness, non-application of mind, exclusion of relevant material and reliance on irrelevant material.
- [LIMIT] Clemency is not a judicial appeal on guilt, though the executive may consider justice, public policy and humanitarian material within constitutional limits.

PRELIMS TRAP

Do not confuse general Article 161 vocabulary with the death-sentence rule. A Governor cannot pardon a death sentence, but is not powerless: suspension, remission or commutation remains possible within the State field. Court-martial remains wholly outside Article 161.

MAINS USE

Use Article 161 to demonstrate responsible executive power, federal allocation by legislative field and limited rule-of-law review.

MINI RECAP

Field decides ordinary Article 161 jurisdiction; death-sentence pardon and court martial belong to Article 72, while State-field suspension, remission and commutation of death sentences remain available. Advice and narrow review control both heads.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: Article 161 is defined by the State offence-law field, subject to a specific death-sentence limitation.

Named evidence: The text includes pardon, reprieve, respite, remission, suspension and commutation; *Maru Ram* binds the Governor to Cabinet advice and *Epuru Sudhakar* permits limited review.

Analysis: Clemency supplies a constitutional safety valve while preserving political responsibility and judicial control over mala fides, arbitrariness and irrelevant considerations.

Qualification: Unlike Article 72, Article 161 has no court-martial limb and does not permit the Governor to pardon a death sentence; within the State field, the Governor may only suspend, remit or commute that sentence.

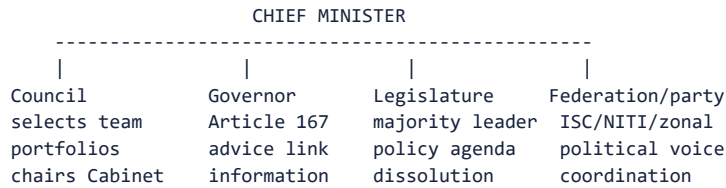
CLOSING RECALL FLOW - ARTICLE 161 v ARTICLE 72

Identify offence law -> locate executive field -> apply death-sentence restriction
-> exclude court martial from Article 161
-> apply Cabinet advice -> test recognised review grounds

SESSION 18 - CHIEF MINISTER: CONSTITUTIONAL POSITION AND POWERS

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 34 - CM as the State executive hub



DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Chief Minister leads the State government because Assembly confidence sustains the Council of Ministers.

Technical definition: Articles 163, 164 and 167 make the CM head of the Council, ministerial selector, policy coordinator, legislative leader and communication channel to the Governor.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Chief Minister is the real State executive because political authority flows through confidence and collective responsibility.

MUST-WRITE KEYWORDS

- Chief Minister
- Article 164
- Assembly confidence
- Council of Ministers
- real executive

How to use them: Frame the answer through Chief Minister; define Article 164, connect Assembly confidence with Council of Ministers to explain the mechanism, and use real executive for the decisive comparison or qualification.

- [FACT] The CM is the head of the State Council of Ministers and the real political executive.
- [FACT] The CM recommends appointment and removal of ministers, allocates/reshuffles portfolios and chairs Council/Cabinet meetings.
- [FACT] The CM's resignation or death ends the existing ministry as a CM-headed Council; one minister's resignation does not.
- [FACT] The CM is the principal constitutional communication channel between the Council and Governor under Article 167.
- [FACT] The CM leads the government's legislative programme, advises on sessions and may advise dissolution subject to constitutional circumstances.
- [ANALYSIS] Party leadership, coalition dependence and Assembly arithmetic determine the practical strength of a CM; the Constitution supplies office, not a uniform level of dominance.
- [LIMIT] Roles in intergovernmental bodies or State planning arrangements may arise from institutional practice; do not confuse them with a closed Article 164 list.

PRELIMS TRAP

A Governor formally appoints the CM but cannot dismiss a CM who demonstrably retains Assembly confidence.

MAINS USE

The CM forms and coordinates the ministry, controls portfolios and advice, and links Cabinet decisions to Governor and legislature. The office integrates policy, administration and legislative responsibility.

MINI RECAP

The Chief Minister is the real State executive because political authority flows through confidence and collective responsibility.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: The Chief Minister is the real State executive because leadership, policy coordination and confidence converge in that office.

Named evidence: Articles 163-164 and 167 support minister selection, portfolio control, Council leadership, legislative strategy and the information channel to the Governor.

Analysis: The CM converts an Assembly majority into coherent administration and enforces ministerial solidarity through appointment and removal advice.

Qualification: Practical dominance varies across majority, minority, coalition and caretaker contexts; constitutional office does not guarantee uniform political strength.

CLOSING RECALL FLOW - CHIEF MINISTER: CONSTITUTIONAL POSITION AND POWERS

START / CONCEPT: Chief Minister: constitutional position and powers

|

v

EXACT TERMS: Chief Minister · Article 164 · Assembly confidence · Council of Ministers · real executive

|

v

MECHANISM / ARGUMENT: The CM forms and coordinates the ministry, controls portfolios and advice, and links Cabinet decisions to Governor and legislature.

|

v

CONSEQUENCE / CONTRAST: The office integrates policy, administration and legislative responsibility.

|

v

UPSC TRAP / ANSWER-USE: A Governor formally appoints the CM but cannot dismiss a CM who demonstrably retains Assembly confidence.

|

v

ANSWER-GRABBING FORMULATION: The Chief Minister is the real State executive because political authority flows through confidence and collective responsibility.

SESSION 19 - ARTICLE 167: COMMUNICATE, FURNISH, COLLECTIVISE

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 35 - The three duties

COMMUNICATE

Council decisions on administration and legislative proposals

|

FURNISH

Information the Governor calls for

|

COLLECTIVISE

Place an individual minister's unconsidered decision before Council if the Governor so requires

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 167 requires the Chief Minister to keep the Governor constitutionally informed.

Technical definition: The CM communicates Council decisions and legislative proposals, supplies requested information and may place an individual minister's decision before the Council.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 167 creates an information bridge, not a parallel gubernatorial administration.

MUST-WRITE KEYWORDS

- Article 167
- communication
- information

- **Council decision**
- **Chief Minister**

How to use them: Frame the answer through Article 167; define communication, connect information with Council decision to explain the mechanism, and use Chief Minister for the decisive comparison or qualification.

- [FACT] Article 167(a) requires communication of Council decisions concerning State administration and legislative proposals.
- [FACT] Article 167(b) requires furnishing information called for by the Governor.
- [FACT] Article 167(c) allows the Governor to require that a matter decided by an individual minister but not considered by the Council be placed before the Council.
- [ANALYSIS] Article 167 protects informed constitutional headship and collective responsibility; it does not create a power to substitute gubernatorial policy.

Memory line: Article 167 = **Communicate - Furnish - Collectivise.**

PRELIMS TRAP

The Governor may seek information but cannot use Article 167 to direct ordinary policy.

MAINS USE

The Governor requests constitutionally relevant information through the CM, who ensures collective Cabinet consideration where required. The duties support informed constitutional action and collective responsibility.

MINI RECAP

Article 167 creates an information bridge, not a parallel gubernatorial administration.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: Article 167 makes information serve collective responsibility rather than gubernatorial supervision.

Named evidence: Its three duties are to communicate Council decisions and legislative proposals, furnish requested information and place an individual minister's unconsidered decision before the Council.

Analysis: The channel lets the Governor perform constitutional functions on an informed record and prevents departmental action from escaping collective Cabinet responsibility.

Qualification: The power to seek information does not authorise the Governor to direct ordinary policy or bypass the Chief Minister to administer departments.

CLOSING RECALL FLOW - ARTICLE 167: COMMUNICATE, FURNISH, COLLECTIVISE

START / CONCEPT: Article 167: communicate, furnish, collectivise

|

v

EXACT TERMS: Article 167 • communication • information • Council decision • Chief Minister

|

v

MECHANISM / ARGUMENT: The Governor requests constitutionally relevant information through the CM, who ensures collective Cabinet consideration where required.

|

v

CONSEQUENCE / CONTRAST: The duties support informed constitutional action and collective responsibility.

|

v

UPSC TRAP / ANSWER-USE: The Governor may seek information but cannot use Article 167 to direct ordinary policy.

|

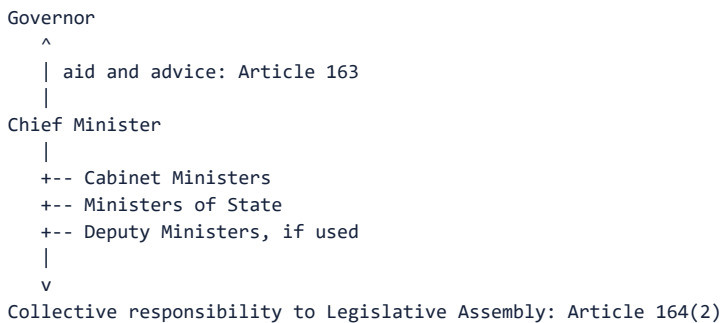
v

ANSWER-GRABBING FORMULATION: Article 167 creates an information bridge, not a parallel gubernatorial administration.

SESSION 20 - STATE COUNCIL OF MINISTERS UNDER ARTICLES 163-164

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 36 - Responsibility architecture



DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The State Council aids and advises the Governor and remains collectively responsible to the Legislative Assembly.

Technical definition: Articles 163-164 govern appointment on CM advice, tenure, oath, six-month membership, collective responsibility and individual office during pleasure.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Council converts electoral confidence into coordinated executive action under a Chief Minister.

MUST-WRITE KEYWORDS

- Article 163
- Article 164
- collective responsibility
- ministerial advice
- six-month rule

How to use them: Frame the answer through Article 163; define Article 164, connect collective responsibility with ministerial advice to explain the mechanism, and use six-month rule for the decisive comparison or qualification.

Appointment and tenure

- [FACT] The Governor appoints the CM; other ministers are appointed by the Governor on the CM's advice.
- [FACT] Ministers hold office during the Governor's pleasure.
- [ANALYSIS] In parliamentary practice, that pleasure is operationally controlled by the CM for individual ministers while the whole ministry depends on Assembly confidence.
- [FACT] The Governor administers oaths of office and secrecy in the Third Schedule.
- [FACT] Article 164(4) applies the six-consecutive-month non-member rule to ministers.

Collective responsibility

- [FACT] The entire Council is collectively responsible to the **Legislative Assembly**, not the Legislative Council.
- [FACT] A carried no-confidence motion or demonstrated loss of essential confidence requires the ministry to resign or pursue a constitutionally proper dissolution route.
- [ANALYSIS] Collective responsibility has three dimensions: confidence, solidarity and unified accountability.
- [LIMIT] Every defeat on an ordinary Bill does not mechanically equal loss of confidence; context, express confidence motions and essential supply matter.

Individual responsibility

- [FACT] One minister may leave office without the whole Council falling.

- [ANALYSIS] The CM enforces individual responsibility through portfolio control, demand for resignation and advice to remove.
- [LIMIT] "Individual responsibility" is political/constitutional and must not be confused with criminal or civil liability.

Visual 37 - Responsibility comparison

Type	Constitutional/practical base	Consequence
Collective	Article 164(2)	Whole ministry stands/falls with Assembly confidence
Individual	Article 164(1) pleasure through CM-led practice	One minister may be removed
Legal	Ordinary constitutional/statutory law	Ministers remain legally accountable

PRELIMS TRAP

The Legislative Council cannot remove the ministry, and Governor pleasure over ministers is mediated by the CM and confidence system.

MAINS USE

The Governor appoints ministers on CM advice; the Council governs together and survives only while it retains Assembly confidence. Collective responsibility unifies policy and enables legislative accountability.

MINI RECAP

The Council converts electoral confidence into coordinated executive action under a Chief Minister.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: The State Council of Ministers is one responsible political unit even though ministers hold individual offices.

Named evidence: Articles 163 and 164 provide CM-led advice, appointment on CM advice, Third-Schedule oaths, collective responsibility and the six-consecutive-month membership rule.

Analysis: Collective confidence unifies policy, while the CM's control of portfolios and exit advice disciplines individual ministers.

Qualification: Not every legislative defeat is automatically a no-confidence vote, and pleasure cannot be used to dismiss a ministry that demonstrably retains Assembly confidence.

CLOSING RECALL FLOW - STATE COUNCIL OF MINISTERS UNDER ARTICLES 163-164

START / CONCEPT: State Council of Ministers under Articles 163-164

|

v

EXACT TERMS: Article 163 · Article 164 · collective responsibility · ministerial advice · six-month rule

|

v

MECHANISM / ARGUMENT: The Governor appoints ministers on CM advice; the Council governs together and survives only while it retains Assembly confidence.

|

v

CONSEQUENCE / CONTRAST: Collective responsibility unifies policy and enables legislative accountability.

|

v

UPSC TRAP / ANSWER-USE: The Legislative Council cannot remove the ministry, and Governor pleasure over ministers is mediated by the CM and confidence system.

|

v

ANSWER-GRABBING FORMULATION: The Council converts electoral confidence into coordinated executive action under a Chief Minister.

SESSION 21 - MINISTRY SIZE, DEFECTOR BAR, RANKS AND TRIBAL WELFARE MINISTER

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 38 - 91st Amendment formula

Maximum State ministry
= 15% of total Legislative Assembly membership

Minimum State ministry
= 12

Count includes
= Chief Minister + all ministers

Base does NOT include
= combined strength of Assembly and Council

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Constitution caps State ministries, bars specified defectors and requires a Tribal Welfare Minister in named States.

Technical definition: Articles 164(1A), 164(1B) and the Article 164 proviso impose a 15-percent Assembly-based ceiling, minimum twelve, defector disqualification and the Chhattisgarh-Jharkhand-Madhya Pradesh-Odisha requirement.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The 91st Amendment disciplines ministry size and rewards, while the Tribal Welfare proviso is a separate constitutional obligation.

MUST-WRITE KEYWORDS

- 91st Amendment
- 15 percent
- minimum twelve
- defector bar
- Tribal Welfare Minister

How to use them: Frame the answer through 91st Amendment; define 15 percent, connect minimum twelve with defector bar to explain the mechanism, and use Tribal Welfare Minister for the decisive comparison or qualification.

- [FACT] The Constitution (Ninety-first Amendment) Act, 2003, section 3 inserted Article 164(1A), effective 1 January 2004, capping the total number of ministers including the CM at **15% of total Legislative Assembly membership**, subject to a minimum of twelve.
- [FACT] The constitutional minimum is **12**.
- [FACT] The base is Assembly membership, not both Houses.
- [FACT] Article 164(1B) bars a member disqualified under the specified Tenth Schedule ground from ministerial appointment for the constitutional period until term-end or earlier re-election as provided.
- [ANALYSIS] The cap reduces jumbo ministries and patronage; the office bar attacks "defect and receive a ministry" incentives.

Visual 39 - Conventional ministerial ranks

Rank	Typical role	Constitutional caution
Cabinet Minister	Heads major department; participates in core decisions	"Cabinet" is functional/conventional at State level
Minister of State, independent charge	Heads a department without Cabinet Minister above	Rank details are not exhaustively constitutional

Rank	Typical role	Constitutional caution
Minister of State, attached	Assists Cabinet Minister	Allocation varies
Deputy Minister	Assists senior minister, where used	Conventional and not mandatory

Tribal Welfare Minister

- [FACT] Article 164 requires a minister in charge of tribal welfare in **Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha**.
- [FACT] The minister may additionally be in charge of welfare of Scheduled Castes and backward classes or other work.
- [FACT] The Constitution (Ninety-fourth Amendment) Act, 2006, section 2 substituted **Chhattisgarh, Jharkhand** for **Bihar** in the Article 164 proviso with effect from 12 June 2006.

Visual 40 - Four-State recall

Tribal Welfare Minister rule

Chhattisgarh - Jharkhand - Madhya Pradesh - Odisha

Recall: CJO

PRELIMS TRAP

The cap is not based on both Houses, and Bihar is no longer in the Tribal Welfare Minister proviso.

MAINS USE

Calculate the cap from Assembly strength, apply the floor and test Tenth Schedule disqualification before appointment. The rules limit patronage and preserve specified tribal representation in executive government.

MINI RECAP

The 91st Amendment disciplines ministry size and rewards, while the Tribal Welfare proviso is a separate constitutional obligation.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: The ministry-size and defector rules target patronage without altering parliamentary responsibility.

Named evidence: The Ninety-first Amendment Act, 2003, section 3 inserted Articles 164(1A)-(1B), effective 1 January 2004; the Ninety-fourth Amendment Act, 2006, section 2 substituted Chhattisgarh and Jharkhand for Bihar in the tribal-welfare proviso.

Analysis: The fifteen-per-cent Assembly cap, minimum twelve and defector bar reduce office rewards, while the named-State proviso guarantees focused tribal-welfare responsibility.

Qualification: Cabinet, Minister of State and Deputy Minister are working ranks rather than an exhaustive constitutional classification, and the cap base is the Assembly alone.

CLOSING RECALL FLOW - MINISTRY SIZE, DEFECTOR BAR, RANKS AND TRIBAL WELFARE MINISTER

START / CONCEPT: Ministry size, defector bar, ranks and Tribal Welfare Minister

|

v

EXACT TERMS: 91st Amendment • 15 percent • minimum twelve • defector bar • Tribal Welfare Minister

|

v

MECHANISM / ARGUMENT: Calculate the cap from Assembly strength, apply the floor and test Tenth Schedule disqualification before appointment.

|

v

CONSEQUENCE / CONTRAST: The rules limit patronage and preserve specified tribal representation in executive government.

|

v

UPSC TRAP / ANSWER-USE: The cap is not based on both Houses, and Bihar is no longer in the Tribal Welfare Minister proviso.

|

v

ANSWER-GRABBING FORMULATION: The 91st Amendment disciplines ministry size and rewards, while the Tribal Welfare proviso is a separate constitutional obligation.

SESSION 22 - ARTICLE 165 ADVOCATE GENERAL AND ARTICLE 166 STATE BUSINESS

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 41 - Legal advice and executive form

Article	Institution/rule	Function
165	Advocate General	Advises State government; performs assigned legal duties
166(1)	Name clause	Executive action expressed in Governor's name
166(2)	Authentication	Rules authenticate orders/instruments
166(3)	Business rules	Governor makes rules for convenient transaction/allocation on advice

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Advocate General advises the State government, while Article 166 structures formal executive business.

Technical definition: Article 165 requires High Court-judge qualifications for the State law officer; Article 166 authenticates orders and permits Governor-made business-allocation rules.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 165 Advocate General advice and Article 166 State business rules supply the legal and administrative form of responsible government.

MUST-WRITE KEYWORDS

- **Article 165**
- **Advocate General**
- **Article 166**
- **authentication**
- **business rules**

How to use them: Frame the answer through Article 165; define Advocate General, connect Article 166 with authentication to explain the mechanism, and use business rules for the decisive comparison or qualification.

- [FACT] The Governor appoints as Advocate General a person qualified to be appointed a High Court judge.

- [FACT] The Advocate General holds office during the Governor's pleasure and receives remuneration determined by the Governor.
- [FACT] Article 166's "Governor's name" is a constitutional form; it does not convert every departmental decision into the Governor's personal decision.
- [FACT] Properly authenticated orders cannot be challenged merely on the ground that they were not personally made by the Governor.
- [FACT] Business rules allocate work among ministers and organise decision-making, except constitutionally discretionary business.
- [ANALYSIS] Article 166 translates political responsibility into administratively traceable State action.

PRELIMS TRAP

Authentication protects an order's formal validity; it does not prove that the Governor personally decided the policy.

MAINS USE

The Governor appoints the qualified law officer and formally makes rules allocating and transacting government business. These provisions secure lawful advice, valid form and coordinated administration.

MINI RECAP

Article 165 Advocate General advice and Article 166 State business rules supply the legal and administrative form of responsible government.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: State legal advice, authenticated business and judicial-service appointments are distinct constitutional mechanisms.

Named evidence: Articles 165-166 establish the Advocate General and business form; Articles 233-234 require High Court consultation for district judges and both SPSC and High Court consultation for other judicial service recruitment.

Analysis: The design combines executive form with professional legal advice and judicial-independence checks instead of treating every appointment as personal gubernatorial choice.

Qualification: Article 177 gives the Advocate General participation rights without an automatic vote, and Shamsheer Singh rejects personal satisfaction in Article 234 appointments.

CLOSING RECALL FLOW - ARTICLE 165 ADVOCATE GENERAL AND ARTICLE 166 STATE BUSINESS

START / CONCEPT: Article 165 Advocate General and Article 166 State business

|

v

EXACT TERMS: Article 165 · Advocate General · Article 166 · authentication · business rules

|

v

MECHANISM / ARGUMENT: The Governor appoints the qualified law officer and formally makes rules allocating and transacting government business.

|

v

CONSEQUENCE / CONTRAST: These provisions secure lawful advice, valid form and coordinated administration.

|

v

UPSC TRAP / ANSWER-USE: Authentication protects an order's formal validity; it does not prove that the Governor personally decided the policy.

|

v

ANSWER-GRABBING FORMULATION: Article 165 Advocate General advice and Article 166 State business rules supply the legal and administrative form of responsible government.

SESSION 23 - PRESIDENT AND GOVERNOR: SIMILARITIES THAT MUST NOT ERASE DIFFERENCES

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 42 - Parallel and divergence

Point	President	Governor
Appointment/election	Indirectly elected	Appointed by President
Formal executive	Union	State
Advice article	74	163
Express general discretion formula	No Article 163 equivalent	Article 163 carve-out
Ministry responsibility	Lok Sabha	Legislative Assembly
Ordinance	Article 123	Article 213
Bill assent	Article 111	Article 200
Reserved State Bill	Article 201 decision-maker	Article 200 reservation gateway
Clemency	Article 72, broader	Article 161, narrower
Removal	Impeachment	President's pleasure

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: President and Governor are constitutional heads in parliamentary systems but their texts and powers are not identical.

Technical definition: Articles 74 and 163 differ on express advice language; Articles 72 and 161 differ on clemency; Governors have Article 200 reservation and State-specific responsibilities.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Comparison should use identical parameters rather than treating the Governor as a miniature President.

MUST-WRITE KEYWORDS

- President
- Governor
- Article 74
- Article 163
- clemency

How to use them: Frame the answer through President; define Governor, connect Article 74 with Article 163 to explain the mechanism, and use clemency for the decisive comparison or qualification.

- [ANALYSIS] The offices share parliamentary-head logic but not identical appointment, tenure, discretion or clemency fields.
- [LIMIT] Never reason: "President is bound, therefore Governor is always identically bound." The better formula is: advice is the default for both; Governor has a narrow constitutionally recognised discretionary field.

PRELIMS TRAP

The President may pardon a death sentence and exercises court-martial clemency; the Governor cannot do either, but may suspend, remit or commute a death sentence within the State offence-law field.

MAINS USE

Compare appointment, tenure, advice, discretion, veto, ordinance, pardon, immunity and removal one axis at a time. The method reveals common responsible-government logic and distinct federal functions.

MINI RECAP

Comparison should use identical parameters rather than treating the Governor as a miniature President.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: Union-State mirrors reveal shared parliamentary logic but text-specific differences.

Named evidence: Articles 53/154, 74/163, 75/164, 77/166, 78/167 and 88/177 pair vesting, advice, responsibility, business, information and legislative participation.

Analysis: The mirrors show why formal heads act through responsible ministries, while Article 163's discretion language and Article 161's field differ from the Union provisions.

Qualification: Similarity must not erase distinct routes such as Article 200 reservation, Article 72 court-martial power or the State minimum ministry of twelve.

CLOSING RECALL FLOW - PRESIDENT AND GOVERNOR: SIMILARITIES THAT MUST NOT ERASE DIFFERENCES

START / CONCEPT: President and Governor: similarities that must not erase differences

|

v

EXACT TERMS: President · Governor · Article 74 · Article 163 · clemency

|

v

MECHANISM / ARGUMENT: Compare appointment, tenure, advice, discretion, veto, ordinance, pardon, immunity and removal one axis at a time.

|

v

CONSEQUENCE / CONTRAST: The method reveals common responsible-government logic and distinct federal functions.

|

v

UPSC TRAP / ANSWER-USE: The President may pardon a death sentence and exercises court-martial clemency; the Governor cannot do either, but may suspend, remit or commute a death sentence within the State offence-law field.

|

v

ANSWER-GRABBING FORMULATION: Comparison should use identical parameters rather than treating the Governor as a miniature President.

SESSION 24 - DUAL ROLE, FEDERAL FRICTION AND INSTITUTIONAL INCENTIVES

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 43 - Friction mechanism

Union appointment: Article 155

+

Pleasure tenure: Article 156

+

State constitutional headship: Articles 154/163

+

Discretion-sensitive powers: 200/356/hung House

|

v

Perceived divided loyalty

|

v

Assent delay / formation dispute / Chancellor conflict / 356 report

|

v

Federal litigation and political distrust

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Union appointment and State-facing powers place the Governor at a recurring federal junction.

Technical definition: Articles 155-156 create structural Union linkage, while Articles 163, 200 and 356 place the office inside sensitive State government decisions.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The office can bridge constitutional communication, yet its incentive structure can create partisan perception.

MUST-WRITE KEYWORDS

- Union appointment
- pleasure tenure
- federal friction
- constitutional head
- neutrality

How to use them: Frame the answer through Union appointment; define pleasure tenure, connect federal friction with constitutional head to explain the mechanism, and use neutrality for the decisive comparison or qualification.

- [ANALYSIS] The Governor is simultaneously the State's constitutional head and an office filled and tenured through the Union. That design creates a recurring neutrality problem.
- [ANALYSIS] Friction intensifies where Union and State governments are politically opposed because discretionary moments become high-stakes federal gates.
- [LIMIT] Political alignment is explanatory, not proof of illegality in any specific case.
- [ANALYSIS] Statutory Chancellor disputes add a second hat to a constitutional office; clarity improves when State law precisely separates statutory university functions from Article 163 government.

Arguments for retaining the office

- [ANALYSIS] Ensures continuity of constitutional form.
- [ANALYSIS] Provides a neutral facilitator in a genuinely hung Assembly.
- [ANALYSIS] Supplies information and warning before constitutional breakdown.
- [ANALYSIS] Connects State legislation to presidential scrutiny in constitutionally sensitive cases.

Criticisms

- [ANALYSIS] Pleasure tenure may incentivise responsiveness to the Union.
- [ANALYSIS] Assent and formation powers can delay or alter elected-government choices.
- [ANALYSIS] Chancellor roles can create parallel administrative authority.
- [ANALYSIS] Conventions remain weakly enforceable until litigation occurs.

Visual 44 - Critique and reply

Critique	Institutional reply	Residual problem
Agent of Centre	<i>Shamsher Singh (1974)</i> , <i>S.R. Bommai (1994)</i> , judicial review	Review is episodic and after conflict
Partisan floor test	<i>Subhash Desai (2023)</i> objective-material test	Political facts remain contested
Pocket veto on Bills	2025 limited mandamus	No rigid timeline
Arbitrary 356 report	Parliament + <i>S.R. Bommai (1994)</i>	Information asymmetry
Chancellor overreach	Statutory redesign	State-specific litigation

PRELIMS TRAP

Calling the Governor the Centre's representative is analytical shorthand, not legal authority to follow party directions.

MAINS USE

Appointment and tenure shape incentives when the Governor handles formation, assent, university statutes or breakdown reports. Neutral conduct can stabilise federal relations; partisan use can delay elected State action and erode trust.

MINI RECAP

The office can bridge constitutional communication, yet its incentive structure can create partisan perception.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: Federal friction arises from the combination of Union-controlled tenure and State-facing threshold powers.

Named evidence: Articles 155-156 place appointment and pleasure at Union level, while Articles 164, 200 and 356 engage formation, legislation and breakdown inside the State.

Analysis: A neutral Governor can transmit constitutional information and facilitate transitions; partisan timing can delay an elected programme and corrode intergovernmental trust.

Qualification: The Governor is not legally an agent of the Union, and university Chancellor disputes must be traced to the relevant State statute rather than Article 153.

CLOSING RECALL FLOW - DUAL ROLE, FEDERAL FRICTION AND INSTITUTIONAL INCENTIVES

START / CONCEPT: Dual role, federal friction and institutional incentives

|
v

EXACT TERMS: Union appointment · pleasure tenure · federal friction · constitutional head · neutrality

|
v

MECHANISM / ARGUMENT: Appointment and tenure shape incentives when the Governor handles formation, assent, university statutes or breakdown reports.

|
v

CONSEQUENCE / CONTRAST: Neutral conduct can stabilise federal relations; partisan use can delay elected State action and erode trust.

|
v

UPSC TRAP / ANSWER-USE: Calling the Governor the Centre's representative is analytical shorthand, not legal authority to follow party directions.

|
v

ANSWER-GRABBING FORMULATION: The office can bridge constitutional communication, yet its incentive structure can create partisan perception.

SESSION 25 - SARKARIA, PUNCHHI AND NCRWC REFORM AGENDA

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 45 - Recommendation matrix

Body	Main Governor-related proposal in sourced Core	Status
Sarkaria Commission	Eminent outsider; non-partisan; consult CM; removal only for compelling reasons; Article 356 last resort	Proposal/convention, not law
NCRWC/Venkatachaliah	Appointment committee including PM, Home Minister, Lok Sabha Speaker and State CM; tenure disturbed only rarely	Proposal, not law
Punchhi Commission	Fixed tenure; State-legislature-linked removal/impeachment-type process; clearer modern discretion norms	Proposal, not law

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Major commissions propose neutral selection, tenure protection and disciplined use of gubernatorial powers.

Technical definition: Sarkaria, NCRWC and Punchhi recommendations address eminent non-partisan appointment, CM consultation, removal, floor tests, assent, Article 356 and post-tenure conduct.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The reform consensus seeks accountable neutrality without abolishing constitutional flexibility.

MUST-WRITE KEYWORDS

- Sarkaria Commission
- Punchhi Commission
- NCRWC
- tenure reform
- CM consultation

How to use them: Frame the answer through Sarkaria Commission; define Punchhi Commission, connect NCRWC with tenure reform to explain the mechanism, and use CM consultation for the decisive comparison or qualification.

- [ANALYSIS] The commissions converge on three aims: neutral selection, tenure security and objective handling of crisis powers.
- [LIMIT] They differ in institutional detail. Do not merge them into one enacted code.
- [FACT] The constitutional pleasure doctrine and presidential appointment remain unchanged.

Visual 46 - Reform from cause to cure

Partisan appointment risk	-> consultative/plural selection
Pleasure insecurity	-> protected or reasoned tenure
Hung-House dispute	-> published neutral criteria + prompt floor test
Assent delay	-> reasoned tracking + constitutional expedition
Article 356 misuse	-> warning, floor test, last resort, review
Chancellor conflict	-> precise State statutory allocation

PRELIMS TRAP

Commission recommendations are persuasive proposals, not current constitutional law.

MAINS USE

Convert recurring failures into appointment, tenure, reason-giving and House-centred procedural safeguards. Implementation could reduce partisan incentives while preserving emergency and formation functions.

MINI RECAP

The reform consensus seeks accountable neutrality without abolishing constitutional flexibility.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: Reform should match each recurring failure to a specific institutional safeguard.

Named evidence: Sarkaria favoured an eminent outsider, political detachment, CM consultation, secure convention and Article 356 restraint; NCRWC proposed a plural appointment committee; Punchhi supported tenure insulation, reasoned removal and House-centred crisis rules.

Analysis: Plural selection reduces partisan perception, tenure security reduces obedience incentives, and transparent floor-test and assent procedures move disputes toward public constitutional forums.

Qualification: These reports differ in detail and remain recommendations; no answer should present fixed tenure, impeachment or a selection committee as current law.

CLOSING RECALL FLOW - SARKARIA, PUNCHHI AND NCRWC REFORM AGENDA

START / CONCEPT: Sarkaria, Punchhi and NCRWC reform agenda
|
v
EXACT TERMS: Sarkaria Commission · Punchhi Commission · NCRWC · tenure reform · CM consultation
|
v
MECHANISM / ARGUMENT: Convert recurring failures into appointment, tenure, reason-giving and House-centred procedural safeguards.
|
v
CONSEQUENCE / CONTRAST: Implementation could reduce partisan incentives while preserving emergency and formation functions.
|
v
UPSC TRAP / ANSWER-USE: Commission recommendations are persuasive proposals, not current constitutional law.
|
v
ANSWER-GRABBING FORMULATION: The reform consensus seeks accountable neutrality without abolishing constitutional flexibility.

SESSION 26 - ANSWER WRITING: CLAIM, EVIDENCE, ANALYSIS, QUALIFICATION, VERDICT

VISUAL FIRST - TOPIC-SPECIFIC GATEWAY

Visual 47 - Universal Polity answer spine

CLAIM
Direct answer to directive
|
NAMED EVIDENCE
Article + case + commission/current control
|
ANALYSIS
What the evidence proves and through what mechanism
|
QUALIFICATION
Textual limit, factual variation, counter-case or status caution
|
VERDICT
Graded answer, not slogan

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A Governor answer earns marks by connecting constitutional text to institutional mechanism, case law, limits and reform.

Technical definition: The recommended structure scales a clear thesis through Article, case proposition, federal consequence, counterpoint and graded verdict.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Governor answer writing should move from a claim through constitutional evidence and analysis to a qualification and reasoned verdict.

MUST-WRITE KEYWORDS

- claim
- constitutional evidence
- case proposition
- qualification
- verdict

How to use them: Frame the answer through claim; define constitutional evidence, connect case proposition with qualification to explain the mechanism, and use verdict for the decisive comparison or qualification.

Directive fidelity

Directive	Required operation
Discuss	Cover main dimensions and arrive at reasoned synthesis
Examine	Test proposition against law and evidence
Critically examine	Build case, counter-case, limitations and graded verdict
Analyse	Break into mechanisms, causes and consequences
Comment	Take a defensible position supported by evidence
Compare	Use common parameters; do not write two disconnected notes
Suggest	Link each reform to a diagnosed defect

Visual 48 - Mark-scaled evidence load

Marks	Structure	Normal named evidence load
10 / 150 words	Thesis -> 2-3 dimensions -> qualification -> verdict	2-3 precise units
15 / 250 words	Thesis -> constitutional map -> cases/current control -> counterpoint -> verdict	4-6 precise units
20 / 250 words	Design -> mechanism -> practice -> cases -> reform -> graded verdict	5-8 precise units

Ready-made evidence chains

1. **Discretion:** Article 163 -> *Shamsher Singh (1974)* default -> *Nabam Rebia (2016)* narrow field -> *Subhash Desai (2023)* objective material -> constitutional-head verdict.
2. **Assent:** Article 200 options -> mandatory HC reservation -> Article 201 distinction -> April/November 2025 control -> no pocket veto and no deemed assent.
3. **Formation:** Article 164 appointment -> objective support -> *S.R. Bommai (1994)* floor -> *Rameshwar Prasad (2006)* anti-apprehension -> *Subhash Desai (2023)* anti-factional test.
4. **Pleasure:** Articles 155-156 -> Union appointment and insecurity -> commission recommendations -> proposals-not-law qualification.
5. **Ordinance:** Article 213 urgency -> laying/six weeks -> *Wadhwa* -> *Krishna Kumar Singh (2017)* -> emergency bridge, not bypass.
6. **CM/CoM:** Articles 163-164 -> Assembly confidence -> Article 167 -> 91st Amendment cap -> real-executive verdict.

PRELIMS TRAP

Do not list every power or case when the question tests only assent, formation, pleasure or ordinance doctrine.

MAINS USE

Identify the directive, select the exact power route, attach named authority and finish with a matched reform or constitutional limit. This structure converts descriptive knowledge into balanced GS-II analysis.

MINI RECAP

Governor answer writing should move from a claim through constitutional evidence and analysis to a qualification and reasoned verdict.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION PARAGRAPH

Claim: A high-scoring Governor answer moves from constitutional text to a bounded institutional verdict.

Named evidence: The usable evidence chain combines the relevant Article, the exact holding of one case, the mechanism producing federal or accountability effects, and a matched commission proposal or current-law qualification.

Analysis: This structure prevents descriptive power lists and shows the examiner why a rule matters in government formation, assent, clemency, ordinances or responsibility.

Qualification: Evidence must be demand-specific: Article 356 detail belongs only where breakdown is asked, and an advisory opinion must not be described as an appellate overruling.

CLOSING RECALL FLOW - ANSWER WRITING: CLAIM, EVIDENCE, ANALYSIS, QUALIFICATION, VERDICT

START / CONCEPT: Answer writing: claim, evidence, analysis, qualification, verdict

|

v

EXACT TERMS: claim · constitutional evidence · case proposition · qualification · verdict

|

v

MECHANISM / ARGUMENT: Identify the directive, select the exact power route, attach named authority and finish with a matched reform or constitutional limit.

|

v

CONSEQUENCE / CONTRAST: This structure converts descriptive knowledge into balanced GS-II analysis.

|

v

UPSC TRAP / ANSWER-USE: Do not list every power or case when the question tests only assent, formation, pleasure or ordinance doctrine.

|

v

ANSWER-GRABBING FORMULATION: Governor answer writing should move from a claim through constitutional evidence and analysis to a qualification and reasoned verdict.

BASIC MCQS / REMEDIATION

Exactly 32 original MCQs - answer sequence ABCD x 8

Each option is explained independently. The Examiner trap identifies the specific close-option error.

MCQ 1.

Article 153 after the Seventh Amendment permits which arrangement?

- A. One person may be Governor of two or more States. B. Two Governors may exercise equal authority in one State. C. A Chief Minister may assume gubernatorial office automatically. D. A common Governor merges the participating State executives.

Answer: A.

Option A explanation: This states the proviso added to Article 153; each State office remains distinct.

Option B explanation: Article 153 contemplates one Governor for each State, not co-equal dual incumbency.

Option C explanation: No constitutional succession rule converts a Chief Minister into Governor.

Option D explanation: A common incumbent does not merge States, legislatures or Councils of Ministers.

Examiner trap 1: Common incumbent is not constitutional merger.

MCQ 2.

How is a State Governor constitutionally selected?

- A. By an electoral college of State legislators. B. By the President through a warrant under hand and seal. C. By the Chief Minister subject to High Court confirmation. D. By the Legislative Assembly through proportional representation.

Answer: B.

Option A explanation: No gubernatorial electoral college exists; that logic belongs to other offices.

Option B explanation: Article 155 supplies presidential appointment by warrant under hand and seal.

Option C explanation: The Chief Minister has no constitutional nomination-and-confirmation route.

Option D explanation: The Assembly neither elects nor confirms the Governor.

Examiner trap 2: Do not import the President's election method into Article 155.

MCQ 3.

Which pair exhausts the constitutional qualifications in Article 157?

- A. Residence in the State and a law degree. B. Thirty years of age and legislative membership. C. Indian citizenship and completed age of thirty-five years. D. Eminence in public life and political non-partisanship.

Answer: C.

Option A explanation: Residence and education are not Article 157 qualifications.

Option B explanation: The age is thirty-five and legislative membership is incompatible with office.

Option C explanation: Article 157 contains precisely citizenship and completed age thirty-five.

Option D explanation: These are reform preferences, not constitutional eligibility conditions.

Examiner trap 3: Sarkaria criteria must not be converted into Article 157 text.

MCQ 4.

Who ordinarily administers the Governor's oath under Article 159?

A. The President of India. B. The Chief Minister. C. The Speaker of the Assembly. D. The Chief Justice of the jurisdictional High Court, or the available senior judge in the Chief Justice's absence.

Answer: D.

Option A explanation: The President appoints but does not ordinarily administer this oath.

Option B explanation: The political executive does not administer the Governor's constitutional oath.

Option C explanation: The Assembly Speaker has no Article 159 role.

Option D explanation: Article 159 places oath administration in the High Court judiciary.

Examiner trap 4: Appointment and oath are performed by different constitutional authorities.

MCQ 5.

Which statement best reflects Article 156 read with B.P. Singhal (2010)?

A. Five years is subject to presidential pleasure, but removal cannot be arbitrary, capricious, unreasonable or mala fide. B. A Governor has an enforceable five-year tenure unless impeached. C. The State Assembly may remove the Governor by effective majority. D. Every removal is non-justiciable because reasons are never relevant.

Answer: A.

Option A explanation: This preserves pleasure while adding constitutional non-arbitrariness review.

Option B explanation: No Governor impeachment process or guaranteed lease exists.

Option C explanation: Article 156 assigns no Assembly removal vote.

Option D explanation: A prima facie arbitrariness case may require Union justification.

Examiner trap 5: Pleasure is broad tenure power, not a synonym for arbitrariness.

MCQ 6.

What did Hargovind Pant v. Dr Raghukul Tilak (1979) decide?

A. A Governor must be an outsider to the State. B. The Governor's office is an independent constitutional office, not employment under the Union for Article 319(d). C. A former SPSC member can never become Governor. D. The Governor is a subordinate employee of the President.

Answer: B.

Option A explanation: Outsider status is a recommendation, not this case's holding.

Option B explanation: The Article 319(d) challenge failed because the office was not Union employment.

Option C explanation: The judgment upheld rather than barred the appointment.

Option D explanation: Presidential appointment does not create an employer-employee relationship.

Examiner trap 6: Use the Article 319(d) context, not a vague independence slogan.

MCQ 7.

Which proposition about Article 361 is correct?

A. No civil proceeding may ever be filed for a Governor's personal act. B. Every governmental act done in the Governor's name is immune from review. C. The Governor enjoys personal process protections during office, while the underlying governmental action can still be reviewed. D. Article 361 gives House-speech immunity under Article 194.

Answer: C.

Option A explanation: Personal civil proceedings may follow the constitutional two-month notice route.

Option B explanation: Rameshwar Prasad confirms that personal immunity does not shield the action's validity.

Option C explanation: This separates the office-holder's immunity from review of constitutional action.

Option D explanation: Article 194 protects legislative members; the Governor is not a House member.

Examiner trap 7: Immunity of person is not immunity of decision or supporting material.

MCQ 8.

How should Articles 154 and 163 be read together?

A. Article 154 makes every executive decision personally discretionary. B. Article 163 transfers State executive power to the President. C. Article 154 eliminates collective responsibility. D. Formal vesting in the Governor operates through the CM-led Council's advice except in a bounded constitutional field.

Answer: D.

Option A explanation: Formal vesting cannot be isolated from responsible government.

Option B explanation: State executive power is not transferred to the Union executive.

Option C explanation: Article 164(2), not Article 154, expressly states collective responsibility.

Option D explanation: This is the parliamentary reading affirmed in Shamsher Singh.

Examiner trap 8: Formal vesting does not prove personal government.

MCQ 9.

The central holding of Shamsher Singh (1974) for State executive power is that:

A. The Governor is a constitutional head ordinarily acting on ministerial advice, including in Article 234 appointments. B. Article 163 creates unlimited personal discretion. C. The Governor may dismiss any majority-holding ministry. D. Every power expressed in the Governor's name requires personal satisfaction.

Answer: A.

Option A explanation: The seven-judge ruling rejected broad personal satisfaction and protected cabinet government.

Option B explanation: Discretion remains exceptional rather than general.

Option C explanation: Assembly confidence constrains pleasure over the ministry.

Option D explanation: The case rejects, rather than establishes, universal personal satisfaction.

Examiner trap 9: Attach Shamsher Singh to advice and its subordinate-judiciary context.

MCQ 10.

Which is outside a legitimate domain of gubernatorial discretion?

A. Choosing a credible CM claimant in a genuinely hung Assembly. B. Selecting ministers contrary to the Chief Minister's advice because the Governor prefers another team. C. Sending a reasoned Article 356 report on constitutional breakdown. D. Using a specially worded constitutional responsibility in a named State.

Answer: B.

Option A explanation: Hung-House selection is a temporary situational necessity followed by floor proof.

Option B explanation: Article 164 requires other ministers to be appointed on CM advice.

Option C explanation: A reasoned breakdown report is constitutionally recognised, though reviewable.

Option D explanation: Special responsibilities remain bounded to their exact texts.

Examiner trap 10: Political controversy by itself does not manufacture discretion.

MCQ 11.

Which statement correctly bounds special gubernatorial responsibilities?

A. Every Governor has personal law-and-order control. B. Article 371A applies uniformly to all tribal States. C. Articles 371A(1)(b) and 371H(a) create named law-and-order responsibilities; Sixth Schedule functions are provision-specific. D. Special responsibility authorises disregard of the Council in ordinary policy.

Answer: C.

Option A explanation: Law-and-order individual judgment exists only where a special text supplies it.

Option B explanation: Article 371A is Nagaland-specific.

Option C explanation: This preserves State-specific constitutional asymmetry without generalisation.

Option D explanation: Exceptional responsibility does not convert routine governance into personal rule.

Examiner trap 11: Never turn a named-State exception into an all-India gubernatorial power.

MCQ 12.

In a hung Assembly, the constitutionally safest course is to:

A. Always invite the single largest party regardless of support. B. Wait indefinitely until parties agree unanimously. C. Allow the Governor to count confidence privately and finally. D. Invite a credible claimant on objective support and require a prompt floor test.

Answer: D.

Option A explanation: No inflexible single-largest-party rule overrides credible coalition support.

Option B explanation: Delay can distort political choice and administration.

Option C explanation: The Governor facilitates but does not finally decide majority.

Option D explanation: Invitation remains provisional until the House supplies democratic proof.

Examiner trap 12: Appointment opens the process; the floor test validates the government.

MCQ 13.

Which case most directly supports a prompt floor test where resignations created objective doubt in 2020 Madhya Pradesh?

- A. Shivraj Singh Chouhan v. Speaker, Madhya Pradesh Legislative Assembly. B. Hargovind Pant v. Raghukul Tilak. C. Epuru Sudhakar v. Government of Andhra Pradesh. D. B.P. Singhal v. Union of India.

Answer: A.

Option A explanation: The Court upheld a prompt test on objective resignation material while leaving the House to decide numbers.

Option B explanation: Hargovind Pant concerns Article 319(d) and office status.

Option C explanation: Epuru Sudhakar concerns clemency review.

Option D explanation: B.P. Singhal concerns gubernatorial removal.

Examiner trap 13: Use Shivraj for objective resignation material, not every factional quarrel.

MCQ 14.

What is the exact warning from Rameshwar Prasad (2006)?

- A. The Governor must invite only a pre-poll alliance. B. Anticipated horse-trading cannot replace objective material and House process to justify pre-emptive dissolution. C. Article 356 proclamations are wholly non-justiciable. D. Courts must always restore a dissolved Assembly.

Answer: B.

Option A explanation: The case did not constitutionalise one invitation order.

Option B explanation: The Bihar dissolution was held unconstitutional; speculative future misconduct was insufficient.

Option C explanation: The judgment reinforces, not denies, judicial review.

Option D explanation: Relief depends on circumstances; the Assembly was not restored after election steps had advanced.

Examiner trap 14: Invalidity of dissolution and the eventual remedy are separate questions.

MCQ 15.

Nabam Rebia (2016) held, in the Arunachal Pradesh context, that the Governor:

- A. May dictate the legislative agenda whenever removal of the Speaker is proposed. B. Possesses final authority over Tenth Schedule disqualification. C. Could not unilaterally pre-pone the session and prescribe the Speaker-removal agenda; Article 174 functions are normally advice-bound. D. May dissolve the Assembly without considering ministerial advice.

Answer: C.

Option A explanation: The impugned intervention was invalidated, not approved.

Option B explanation: Disqualification belongs to the Speaker subject to review.

Option C explanation: This is the bounded Governor holding; a separate Speaker-removal issue was later referred.

Option D explanation: Dissolution does not become an unrestricted personal power.

Examiner trap 15: Separate the valid Governor holding from the referred Speaker-removal question.

MCQ 16.

According to Subhash Desai (2023), a Governor should call a floor test:

A. To identify which faction controls a political party. B. Whenever any group of legislators alleges internal dissatisfaction. C. To decide the validity of a party whip. D. Only on objective material indicating possible loss of House confidence, not factional dissent alone.

Answer: D.

Option A explanation: Party identity is not for gubernatorial adjudication.

Option B explanation: Intra-party discontent alone was held insufficient.

Option C explanation: Whip validity follows party and Tenth Schedule processes.

Option D explanation: The Court found the Maharashtra call unjustified on the material before the Governor.

Examiner trap 16: A floor test verifies House confidence; it does not create the doubt it purports to test.

MCQ 17.

State of Punjab v. Principal Secretary to the Governor (2023) establishes that:

A. The Governor cannot keep Bills pending indefinitely and, if withholding assent, must follow the return route in Article 200's first proviso. B. A Governor may invalidate a legislative sitting merely by questioning it. C. Every pending Bill receives automatic deemed assent. D. The Court may dictate which Article 200 option the Governor selects.

Answer: A.

Option A explanation: The judgment required a decision and linked withholding with reconsideration.

Option B explanation: The Court upheld the reconvened sittings and rejected this claimed power.

Option C explanation: Punjab did not create deemed assent.

Option D explanation: It required constitutional action without choosing the merits of the option.

Examiner trap 17: Punjab rejects inaction, not the Governor's listed constitutional choices.

MCQ 18.

Under the five-judge 2025 Article 143 opinion, Article 200 presents:

A. Four independent options including a free-standing return power. B. Three options: assent; reserve; or withhold and return a non-Money Bill with comments. C. Only assent or reservation. D. A personal pocket veto of indefinite silence.

Answer: B.

Option A explanation: The first proviso restricts the withholding route rather than adding a fourth option.

Option B explanation: Conclusion 165.1 states this three-option structure.

Option C explanation: Withholding-return remains constitutionally available for a non-Money Bill.

Option D explanation: Prolonged unexplained indefinite inaction may attract limited mandamus.

Examiner trap 18: Count the current opinion's routes, not isolated verbs in the bare text.

MCQ 19.

How should the April and November 2025 assent decisions be related?

A. The advisory opinion appellate-set aside all relief in the Tamil Nadu case. B. The Tamil Nadu judgment remains the sole general rule on fixed timelines. C. The later advisory opinion expressly called the general timeline/deemed-assent reasoning erroneous, but did not formally overrule or set aside the inter partes relief. D. Both decisions require automatic assent after three months.

Answer: C.

Option A explanation: Article 143 advice was not an appeal in the Tamil Nadu case.

Option B explanation: The later five-judge opinion rejects the fixed-clock rule.

Option C explanation: This captures both doctrinal disapproval and procedural relationship.

Option D explanation: The opinion rejects rigid timelines and deemed assent.

Examiner trap 19: Say 'disapproved the general propositions', not 'formally overruled'.

MCQ 20.

After a non-Money Bill reserved under Article 201 is returned and passed again, the President:

A. Must assent because Article 200's repassage rule applies identically. B. Loses power to withhold assent. C. Must obtain a fresh Article 143 opinion. D. Is not constitutionally compelled to assent; Article 201 contains no 'shall not withhold' command.

Answer: D.

Option A explanation: Article 200's direct-return language cannot be imported into Article 201.

Option B explanation: The President retains the constitutional assent/withholding choice.

Option C explanation: The 2025 opinion says an Article 143 reference is not mandatory.

Option D explanation: This is the textually decisive distinction.

Examiner trap 20: The State Houses' six-month reconsideration duty does not bind the President to assent.

MCQ 21.

When can an Article 213 ordinance ordinarily be promulgated in a bicameral State?

A. When the Legislative Assembly is not in session or when both Houses are not simultaneously in session, and immediate action is necessary. B. Only when both Houses have been dissolved. C. Whenever the Governor disagrees with pending legislation. D. Only after presidential assent to the ordinance text.

Answer: A.

Option A explanation: Article 213's bicameral session condition and urgency requirement are stated here.

Option B explanation: Dissolution of both Houses is neither required nor generally possible for a continuing Council.

Option C explanation: Policy disagreement cannot satisfy constitutional necessity.

Option D explanation: Presidential instructions are required only in the three specified proviso situations.

Examiner trap 21: The power is unavailable only when both Houses are in session together.

MCQ 22.

D.C. Wadhwa v. State of Bihar is best known for holding that:

A. Every ordinance is unconstitutional. B. Routine serial re-promulgation to avoid the legislature is a fraud on the Constitution. C. Ordinances survive permanently after lapse. D. The Governor may legislate on Union List subjects.

Answer: B.

Option A explanation: The case condemned abuse, not the ordinance institution.

Option B explanation: This phrase captures Bihar's repeated bypass of legislative scrutiny.

Option C explanation: Lapse does not automatically preserve the ordinance as permanent law.

Option D explanation: Legislative competence remains a substantive limit.

Examiner trap 22: The vice is repetition as a governing method, not a genuinely urgent first ordinance.

MCQ 23.

Krishna Kumar Singh (2017) adds which control to ordinance doctrine?

A. The Governor's satisfaction can never be reviewed. B. Re-promulgation becomes valid after three cycles. C. Laying before the legislature is mandatory, satisfaction is reviewable at constitutional limits, and effects do not automatically endure. D. Every ordinance must first be approved by the High Court.

Answer: C.

Option A explanation: The seven-judge decision preserves review.

Option B explanation: No numerical safe harbour for re-promulgation exists.

Option C explanation: These are the central legislative-supremacy holdings.

Option D explanation: Judicial pre-clearance is not an Article 213 condition.

Examiner trap 23: Do not reduce Krishna Kumar Singh to only the six-week expiry rule.

MCQ 24.

Which comparison of Articles 72 and 161 is correct?

A. A Governor may pardon a death sentence whenever the offence lies in the State field. B. A Governor has no clemency power at all in a death-sentence case. C. A Governor may exercise clemency over court-martial punishment arising within the State. D. A Governor cannot pardon a death sentence, but may suspend, remit or commute it within the State field; the President may pardon a death sentence and exercises court-martial clemency.

Answer: D.

Option A explanation: State-field jurisdiction does not authorise a Governor to pardon a death sentence.

Option B explanation: Article 161 still permits suspension, remission or commutation of a death sentence within the State field.

Option C explanation: Court-martial clemency is exclusively within Article 72, not Article 161.

Option D explanation: This states the Article 72(1)(c)/72(3) distinction and the separate court-martial exclusion accurately.

Examiner trap 24: Article 161 uses the word 'pardon' generally, but a Governor cannot pardon a death sentence; do not erase the retained powers to suspend, remit or commute it.

MCQ 25.

Maru Ram (1980) treats constitutional clemency as:

A. A power exercised by the appropriate government through binding ministerial advice, not personal mercy. B. A judicial appeal from the conviction. C. An unrestricted personal discretion of the Governor. D. A power exercisable only after legislative approval.

Answer: A.

Option A explanation: The Court located real decision-making in the responsible government.

Option B explanation: Clemency is executive and does not replace appellate adjudication.

Option C explanation: The holding rejects personal gubernatorial clemency.

Option D explanation: No prior House vote is a constitutional condition.

Examiner trap 25: Article 161 orders are governmental decisions in constitutional form.

MCQ 26.

Epuru Sudhakar (2006) permits judicial review of clemency for:

A. Any disagreement with the sentence length. B. Mala fides, arbitrariness, non-application of mind, exclusion of relevant material or reliance on irrelevant material. C. A complete rehearing of guilt in every case. D. Only a defect in the Governor's signature.

Answer: B.

Option A explanation: Courts do not substitute ordinary sentencing preferences.

Option B explanation: These recognised defects police constitutional decision quality.

Option C explanation: Clemency review is limited rather than a universal retrial.

Option D explanation: Authentication is not the exclusive ground of review.

Examiner trap 26: Limited review tests decision defects, not the wisdom of mercy as an appeal.

MCQ 27.

Article 167(c) enables the Governor to require the Chief Minister to:

A. Dismiss an individual minister without Cabinet consideration. B. Disclose Cabinet advice in court. C. Place before the Council a matter decided by a minister but not considered by the Council. D. Transfer State executive power to the Union.

Answer: C.

Option A explanation: Individual exit operates through CM-led ministerial responsibility.

Option B explanation: Article 163(3) protects advice from judicial inquiry.

Option C explanation: This 'collectivise' duty reinforces Cabinet responsibility.

Option D explanation: Information duties do not alter the federal allocation of power.

Examiner trap 27: Article 167 creates an information bridge, not departmental command.

MCQ 28.

Which statement accurately describes Article 164 responsibility and membership?

A. The Council is responsible to both State Houses equally. B. A non-member minister has one year to enter the legislature. C. Governor pleasure allows dismissal of a majority-holding CM at will. D. The Council is collectively responsible to the Assembly, and a minister ceases after six consecutive months without legislative membership.

Answer: D.

Option A explanation: The Legislative Council cannot remove the ministry.

Option B explanation: The constitutional period is six consecutive months.

Option C explanation: Pleasure is structured by confidence and advice.

Option D explanation: Both responsibility and the membership limit are correctly paired.

Examiner trap 28: The confidence House and the cap base are both the Legislative Assembly, but membership may be in either House.

MCQ 29.

What did the Ninety-first Amendment Act, 2003, section 3 insert for States?

A. Articles 164(1A)-(1B): a fifteen-per-cent Assembly-based cap with minimum twelve and a specified defector bar. B. A fixed five-year term for Governors. C. Direct election of Chief Ministers. D. A uniform constitutional Cabinet-rank hierarchy.

Answer: A.

Option A explanation: The provisions took effect on 1 January 2004 and include the CM in the count.

Option B explanation: Article 156 remains unchanged.

Option C explanation: Chief Ministers continue to be appointed within parliamentary government.

Option D explanation: Ministerial ranks remain conventional/practical.

Examiner trap 29: The fifteen-per-cent denominator is total Assembly membership, not both Houses.

MCQ 30.

The Ninety-fourth Amendment Act, 2006, section 2 changed Article 164 by:

A. Abolishing the Tribal Welfare Minister requirement. B. Substituting Chhattisgarh and Jharkhand for Bihar in the named-State proviso. C. Adding every Fifth Schedule State to the proviso. D. Moving the requirement into the Sixth Schedule.

Answer: B.

Option A explanation: The constitutional requirement continues.

Option B explanation: The current list is Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha.

Option C explanation: The rule is not coextensive with Scheduled Areas.

Option D explanation: Article 164, not the Sixth Schedule, contains this ministerial proviso.

Examiner trap 30: Remember the exact substitution and resulting four-State list.

MCQ 31.

Under Articles 165 and 177, the Advocate General:

A. Must be a sitting High Court judge. B. May vote in either State House without membership. C. Must qualify for appointment as a High Court judge and may speak/participate without an automatic vote. D. Is appointed by the Chief Justice of the High Court.

Answer: C.

Option A explanation: Qualification is required; current judicial office is not.

Option B explanation: Voting follows membership, not office as Advocate General.

Option C explanation: This combines eligibility, function and legislative participation accurately.

Option D explanation: The Governor appoints the Advocate General.

Examiner trap 31: Participation under Article 177 is not House membership.

MCQ 32.

Which final combination is constitutionally accurate?

A. The Governor appoints High Court judges and is Chancellor by Article 153. B. Article 234 requires only gubernatorial personal satisfaction. C. University statutes cannot alter a Governor's Chancellor role. D. Articles 233-234 build High Court/SPSC consultation into judicial-service appointments, while any Chancellor role arises only from the relevant State statute.

Answer: D.

Option A explanation: The President appoints High Court judges; Chancellor status is not inherent.

Option B explanation: Shamsher Singh rejects personal satisfaction, and Article 234 names consultations.

Option C explanation: State legislation creates and may redesign the statutory office subject to constitutional limits.

Option D explanation: This preserves judicial-independence checks and the statutory-role boundary.

Examiner trap 32: Do not place a statute-created university office inside the constitutional Governor power list.

PYQS AND ANSWER PRACTICE

Audited objective PYQs

PYQ-P1 - UPSC Prelims 2018, GS-I Q41

Verified demand: criminal proceedings against a Governor and protection against diminution of gubernatorial emoluments/allowances.

Answer withheld pending official UPSC key.

Doctrinal solution: Article 361 bars institution or continuation of criminal proceedings and arrest/imprisonment process during the term. Article 158 protects emoluments and allowances from diminution during the term. The immunity is personal and temporary; governmental action remains reviewable.

PYQ-P2 - UPSC Prelims 2019, GS-I Q66

Verified demand: recommendations concerning the qualities and appointment of an ideal Governor.

Answer withheld pending official UPSC key.

Doctrinal solution: Citizenship and age thirty-five are constitutional qualifications. Eminence, outsider status, political detachment and consultation with the Chief Minister belong to the Sarkaria reform framework, not binding Article 157 text.

PYQ-P3 - UPSC Prelims 2025, GS-I Q54

Consider the following statements:

1. The Constitution of India explicitly mentions that in certain spheres the Governor of a State acts in his/her own discretion.

2. The President of India can, of his/her own, reserve a bill passed by a State Legislature for his/her consideration without it being forwarded by the Governor of the State concerned.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Official Set-A answer: A.

Doctrinal solution: Article 163 and specially worded provisions recognise bounded discretion, so statement 1 is correct. Article 201 begins only when the Governor reserves the Bill; the President cannot self-reserve it, so statement 2 is incorrect.

PYQ-P4 - UPSC Prelims 2025, GS-I Q59

With reference to the Indian polity, consider the following statements:

1. The Governor of a State is not answerable to any court for the exercise and performance of the powers and duties of his/her office.
2. No criminal proceedings shall be instituted or continued against the Governor during his/her term of office.
3. Members of a State Legislature are not liable to any proceedings in any court in respect of anything said within the House.

Which of the statements given above are correct?

A. 1 and 2 only B. 2 and 3 only C. 1 and 3 only D. 1, 2 and 3

Official Set-A answer: D.

Doctrinal solution: Statements 1-2 follow Article 361. Statement 3 follows Article 194. The Governor is a component of the legislature under Article 168 but does not receive Article 194 privilege as a member; the question separately states the members' protection.

Audited Mains PYQs

PYQ-M1 - UPSC GS-II 2022, Q12 - direct owner

Verified demand: Discuss the Governor's legislative powers and the legality/constitutional implications of re-promulgating ordinances. **15 marks | 250 words**

Model answer - claim -> named evidence -> analysis -> qualification

Claim: The Governor's legislative powers facilitate State law-making, but responsible government and legislative supremacy prevent their conversion into personal veto or serial executive legislation.

Named evidence: Article 168 makes the Governor a component of the legislature. Articles 174-176 cover sessions, messages and special address; Article 171 permits nomination of one-sixth of a Legislative Council; Articles 200-201 govern assent and reservation. Under the 2025 Article 143 opinion, Article 200 has three routes and no deemed assent, though prolonged unexplained inaction can receive limited mandamus.

Analysis: Article 213 is the temporary bridge. It requires the relevant House or Houses not to be in session, immediate necessity, State competence, presidential instructions in specified cases, laying and six-week expiry. *D.C. Wadhwa* called routine re-promulgation a fraud on the Constitution. *Krishna Kumar Singh* made laying mandatory, preserved review and rejected automatic survival of every lapsed ordinance's effects.

Qualification: A genuinely new emergency can justify a fresh ordinance; the constitutional vice is repetition designed to avoid legislative scrutiny. The Governor's role is facilitative and advice-based, not an alternative law-making chamber.

PYQ-M2 - UPSC GS-II 2020, Q3 - supporting federalism application

Question: How far have cooperation, competition and confrontation shaped the nature of federation in India? **10 marks | 150 words | Primary owner: Polity 12**

Model route: Cooperation appears through fiscal and intergovernmental institutions; competition through State policy innovation; confrontation through assent, Article 356, fiscal and investigative disputes. Articles 155-156 create the Governor's Union link, while Bommai and the 2025 assent opinion make conflict reviewable and bounded. Conflict is not inherently anti-federal, but partisan use of constitutional offices destroys bargaining trust.

PYQ-M3 - UPSC GS-II 2022, Q13 - supporting party-federalism application

Question: While national political parties in India favour centralisation, regional parties favour State autonomy.
Comment. 15 marks | 250 words | Primary owner: Polity 12

Model route: The proposition captures an incentive, not an invariant ideology. Parties often reverse positions with their location in power. The Governor illustrates structural asymmetry because Union appointment and pleasure tenure intersect with State formation, assent and breakdown. Sarkaria, NCRWC and Punchhi reforms seek office-neutrality whichever party governs the Union.

PYQ-M4 - UPSC GS-II 2023, Q13 - supporting emergency application

Verified demand: Account for legal and political factors behind reduced Article 356 use since the mid-1990s. **15 marks | 250 words | Primary owner: Polity 14**

Model route: *S.R. Bommai* made proclamations reviewable and floor tests central; *Rameshwar Prasad* invalidated speculative dissolution. Coalition federalisation, regional parties, public scrutiny and commission norms raised political costs. Article 356 remains available on a report or otherwise, so restraint reflects altered incentives rather than textual repeal.

PYQ-M5 - UPSC GS-II 2024, Q13 - supporting Centre-State application

Verified demand: Explain recent changes in Centre-State relations and measures for trust and stronger federalism. **15 marks | 250 words | Primary owner: Polity 13**

Model route: Use GST and intergovernmental coordination for cooperation, fiscal/agency/assent disputes for confrontation, and judicial controls for constitutional bargaining. Match reforms to defects: transparent gubernatorial reasons, prompt floor tests, consultative appointment, predictable transfers and statute-specific university governance. Commission recommendations remain proposals.

Exactly six original Mains questions with model solutions

Original Q1 - 10 marks - answer in not more than 150 words

Question: "The Governor's discretion is constitutionally necessary but politically dangerous." Examine.

Model solution

Claim: Article 163 permits discretion only where the Constitution expressly or necessarily requires it; it does not create a rival executive.

Named evidence: *Shamsher Singh* makes advice the rule. Legitimate threshold functions include hung-Assembly appointment, an objective floor-test trigger, Article 200 choice under the 2025 opinion, Article 356 reporting and named special responsibilities.

Analysis: These functions prevent paralysis where ministerial advice cannot neutrally settle who holds office or where the Constitution assigns scrutiny. Yet Union appointment and pleasure tenure can turn timing into partisan leverage.

Qualification: *Bommai*, *Rameshwar Prasad*, *Nabam Rebia* and *Subhash Desai* require objective material, House-centred proof and reviewable purpose. Discretion is legitimate as process guardianship, dangerous as political supervision.

Original Q2 - 10 marks - answer in not more than 150 words

Question: Explain why the Chief Minister and State Council of Ministers constitute the real State executive.

Model solution

Claim: Formal power is gubernatorial, but political power belongs to the Assembly-responsible ministry.

Named evidence: Articles 163-164 place advice, ministerial appointment and collective responsibility around the Chief Minister. Article 167 makes the CM the constitutional information channel; Article 166 merely expresses action in the Governor's name.

Analysis: The CM selects and coordinates ministers, controls portfolios, leads the legislative programme and converts majority support into administration. The Council stands or falls together before the Assembly.

Qualification: The Governor retains real threshold and scrutiny functions in formation, assent and breakdown. Nevertheless, ordinary policy authority follows democratic responsibility; hence the State executive is formally gubernatorial but substantively ministerial.

Original Q3 - 15 marks - answer in not more than 250 words

Question: "Article 200 creates a constitutional gate, not a gubernatorial pocket veto." Discuss after the 2025 decisions.

Model solution

Claim: Article 200 requires a constitutional choice and contains no power of indefinite silence.

Named evidence: *State of Punjab* linked withholding with return and required action. *State of Tamil Nadu* prescribed timelines and deemed assent to ten Bills. The later five-judge Article 143 opinion states three routes-assent, reserve, or withhold-and-return a non-Money Bill-while mandatory reservation protects a High Court endangered by the Bill.

Analysis: The opinion treats choice among the routes as discretionary and bars pre-enactment merits review. It nevertheless permits limited mandamus where inaction is glaring, prolonged, unexplained and indefinite. It rejects rigid court-made timelines and judicially deemed assent because courts cannot substitute themselves for the constitutional decision-maker.

Qualification: The advisory opinion expressly disapproved the April judgment's general timeline and deemed-assent reasoning, but did not appellate-set aside its inter partes relief. Therefore, Article 200 is neither a personal veto nor an automatic-assent mechanism: the Governor must decide, while courts police non-performance without choosing the result.

Original Q4 - 15 marks - answer in not more than 250 words

Question: Frame a constitutionally proper response to a hung Assembly and a later claim that the ministry has lost confidence.

Model solution

Claim: The Governor's role is temporary and procedural: enable government formation, then let the Assembly determine political title.

Named evidence: Article 164 authorises CM appointment but gives no rigid invitation order. Objective coalition support, pre-poll arrangements and credible letters may guide a provisional invitation. *Bommai* makes the floor the ordinary majority forum. *Shivraj Singh Chouhan* upheld a prompt test where resignations created objective doubt; *Subhash Desai* rejected factional dissent alone.

Analysis: An early test minimises private arithmetic and ensures public accountability. If the ministry loses, it should resign; if it refuses after demonstrated loss, dismissal may follow. The Governor should explore a viable alternative before dissolution.

Qualification: *Rameshwar Prasad* prohibits pre-emptive dissolution based on anticipated horse-trading. Disqualification, whip and symbol disputes remain with the Speaker, courts and ECI. A caretaker continues essentials with restraint. The stable sequence is objective support -> invitation -> prompt floor test -> alternative government -> dissolution only as last resort.

Original Q5 - 20 marks - answer in not more than 250 words

Question: "The Governor is a federal bridge in constitutional theory but a fault line in political practice." Critically examine and suggest reforms.

Model solution

Claim: The office links Union and State while preserving a formal head for responsible government, but its incentive structure can undermine neutrality.

Named evidence: Articles 155-156 place appointment and pleasure at Union level; Articles 164, 200 and 356 engage government formation, State legislation and constitutional breakdown. Hargovind Pant denies that the Governor is a Union employee, while B.P. Singhal bars arbitrary removal.

Analysis: A neutral Governor facilitates transitions, obtains constitutional information and warns of breakdown. Friction arises when rival-party governments face delayed Bills, questionable floor tests, speculative dissolution or statutory university disputes. *Bommai*, *Rameshwar Prasad*, *Nabam Rebia*, *Subhash Desai* and the 2025 assent opinion move these conflicts toward objective material, the House and limited review.

Counter-case: Appointment from outside the State and national perspective can protect continuity, minorities and constitutional compliance; abolition would not remove political conflict.

Reforms and qualification: Sarkaria supports an eminent detached outsider, CM consultation and Article 356 restraint; NCRWC proposes plural selection; Punchhi favours stronger tenure/removal safeguards and clearer crisis rules. Transparent reasons, prompt tests and statute-specific Chancellor design should supplement law. These remain proposals. The objective is accountable neutrality, not a powerless Governor.

Original Q6 - 20 marks - answer in not more than 250 words

Question: Evaluate Article 213 as a balance between executive necessity and legislative supremacy.

Model solution

Claim: Article 213 is a valid emergency bridge whose legitimacy depends on rapid return to representative law-making.

Named evidence: The relevant House or Houses must not be in session and immediate action must be necessary. An ordinance has Act-like force within State competence, requires presidential instructions in three specified situations, must be laid and ceases six weeks after the later reassembly unless withdrawn or disapproved earlier.

Analysis: The power prevents legal and administrative paralysis between sittings. Its danger is executive avoidance of debate, committee scrutiny and an uncertain majority. *D.C. Wadhwa* called routine re-promulgation a fraud on the Constitution. *Krishna Kumar Singh*, seven judges by 5:2, made laying mandatory, preserved review of satisfaction and rejected automatic survival of all lapsed effects.

Qualification: Courts should test competence, mala fides, relevant material and repetition, not substitute their view of policy urgency. A fresh, genuinely changed emergency may justify fresh action.

Verdict: Necessity can authorise temporary law, but only legislative scrutiny can legitimise its continuation. Article 213 balances the two values when the ordinance is exceptional, reasoned, laid promptly and never used as a parallel legislature.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

A1. Formal vesting, real authority and constitutional trusteeship

Visual 49 - Three levels of gubernatorial action

Level	Nature	Example	Standard
Formal	Gives legal form to advised decision	Appointment of ministers on CM advice	Follow responsible government
Facilitative	Maintains constitutional process	Seeking information under Article 167	Neutrality and relevance
Discretion-sensitive	Acts where ordinary advice cannot settle threshold	Hung House, reservation, 356 report	Objective material and narrow purpose

- [ANALYSIS] The Governor is best described as a **constitutional trustee of process**, not a rival policy-maker.
- [ANALYSIS] Trusteeship requires fidelity to institutions: Assembly for confidence, political party for internal leadership, Speaker for Tenth Schedule adjudication, courts for legality and elected ministry for policy.

A2. The political-information problem

Visual 50 - Why mistakes occur

Private political claims
+
Rapidly changing House numbers
+
Speaker/defection proceedings
+
Union-State party competition
|
v
Governor faces information asymmetry
|
v
Constitutional cure:
objective material + transparent reasons + prompt floor test

- [ANALYSIS] A Governor often receives asymmetric claims from parties that benefit from a particular timing.
- [ANALYSIS] The safest institutional response is to minimise private factual adjudication and move the decisive question to the public Assembly floor.
- [LIMIT] A floor test cannot cure every illegality. It does not decide the validity of a whip, disqualification petition or party constitution.

A3. Assent as a separation-of-powers problem

- [ANALYSIS] State law-making requires interaction among legislature, responsible executive, Governor and sometimes President. Delay lets an unelected office block an elected legislature without openly accepting responsibility for assent, withholding or reservation.
- [ANALYSIS] The April 2025 judgment prioritised effective constitutional government; the November advisory opinion prioritised textual silence and institutional non-substitution.
- [LIMIT] The exam-worthy synthesis is not "judiciary versus Governor." It is that courts may police prolonged non-performance while not creating a new constitutional option or choosing the result.

Visual 51 - Competing values

Value	What it supports	What restrains it
Democratic law-making	Timely decision on passed Bills	Constitutional reservation/scrutiny
Federal autonomy	Respect for State legislature	Article 200/201 central gate
Separation of powers	No judicially invented deemed assent	Limited mandamus against inaction
Rule of law	Reasons and review	Immunity of person, not action

A4. Anti-defection and formation crises

- [FACT] *Subhash Desai (2023)* held that the whip/leader recognised for Tenth Schedule purposes must be appointed by the **political party**, not merely a breakaway legislature-party faction.
- [FACT] It also allowed Election Commission symbol proceedings and Speaker disqualification proceedings to run on distinct tracks.
- [LIMIT] These holdings do not authorise the Governor to decide the real political party.
- [ANALYSIS] Government formation, floor testing, disqualification and symbol adjudication overlap politically but remain institutionally separate.

Visual 52 - Four-track firewall

Governor -> Does ministry retain Assembly confidence?
 Speaker -> Are members disqualified under Tenth Schedule?
 ECI -> Which group receives symbol recognition under election law?
 Court -> Were constitutional/statutory limits breached?

No track should usurp another.

A5. Federal reform: legal rules versus conventions

- [ANALYSIS] Some defects require legal change: tenure/removal architecture, statutory Chancellor design or procedural reporting.
- [ANALYSIS] Others need conventions: consultation, public reasons, caretaker restraint and non-partisan communication.
- [LIMIT] Codification can create rigidity and litigation; pure convention can be ignored. A mixed model is preferable.

Visual 53 - Reform instrument choice

Defect	Best primary instrument	Reason
Appointment neutrality	Constitutional convention/statutory consultation, possibly amendment	Broadens legitimacy
Tenure insecurity	Constitutional reform if fixed protection desired	Article 156 now controls
Hung-House procedure	Published convention + judicial standards	Needs flexibility
Assent tracking	Transparent procedure/reasons	Improves accountability without deemed assent
Chancellor conflict	State university statute	Role is statutory
Article 356 abuse	Existing <i>S.R. Bommai (1994)</i> law + political compliance	Legal safeguards already substantial

A6. Source and factual-control note

- Authoritative owner: Polity/basic/Governor-and-CM.md.
- Optional depth: Polity/advanced/19_Governor-CM-State-Council.md.
- Cross-links used: Polity 12-17; basic/Anti-Defection-Law.md; basic/State-Legislature.md; basic/High-Court.md.
- Constitutional anchors: Articles 153-176, 200-201, 213, 233, 243-I, 243K, 316, 356 and 361.
- Judicial anchors: *Shamsher Singh (1974)*; *S.R. Bommai (1994)*; *Rameshwar Prasad (2006)*; *Nabam Rebia (2016)*; *Subhash Desai (2023)*; *D.C. Wadhwa (1986)*; *Krishna Kumar Singh (2017)*; *B.R. Kapur, Maru Ram, Epuru Sudhakar*.
- [LIMIT] Commission recommendations are proposals, not law.
- [LIMIT] No live office-holder list is maintained.
- [LIMIT] Any future answer must recheck assent doctrine after 7 September 2026.

CONSOLIDATED REGISTER NOTES

Constitutional operating chain

Assembly confidence

- > Governor appoints CM: Article 164
- > CM forms Council
- > Council aids/advises Governor: Article 163
- > action expressed in Governor's name: Article 166
- > CM informs Governor: Article 167
- > Council remains responsible to Assembly: Article 164(2)
- Governor = formal constitutional head; CM-Council = responsible political executive.
- Article 154 formal vesting must be read with Articles 163-164 responsibility.
- Advice is the norm; discretion is a narrow constitutional exception.

- "Nominal" means no independent ordinary policy mandate, not ceremonial uselessness.

Articles 153-167 rapid map

Article	Recall
153	Governor for each State; common Governor permitted
154	State executive power vested in Governor
155	Presidential appointment by warrant
156	Pleasure + five years + resignation + continuity
157	Citizen; 35
158	Conditions, residence, emoluments, no diminution
159	Oath by HC Chief Justice/senior judge
160	President covers unprovided contingency
161	State clemency, narrower than Article 72
162	Extent of State executive power
163	Advice with narrow discretion
164	CM/ministers, responsibility, cap, oaths, six months
165	Advocate General
166	Governor's name, authentication, business rules
167	Communicate, furnish, collectivise

Governor appointment and office conditions

- Appointed by President, not elected.
- Qualification: Indian citizen + completed 35 years.
- No Parliament/State-legislature membership; seat deemed vacated on assuming office.
- No other office of profit.
- Official residence without rent; statutory emoluments/allowances.
- Emoluments and allowances cannot be diminished during term.
- Common Governor: President determines allocation of emoluments among States.
- Oath: preserve, protect and defend Constitution/law and serve State people; administered under Article 159.
- Outsider/non-partisan/CM consultation = commission criteria, not constitutional qualification.

Common Governor and tenure

- Same person may govern two or more States; offices/ministries remain separate.
- Five-year term is subject to President's pleasure.
- No fixed enforceable five-year right.
- Resignation addressed to President.
- Continues until successor enters office.
- Transfer and reappointment are constitutionally possible.
- No current State-legislature impeachment process.
- *B.P. Singhal* (2010): no fixed enforceable tenure, but no capricious, unreasonable or mala fide removal.

Article 361 immunity

Protection	Exact point
Official non-answerability	Governor not personally answerable to court for official exercise
Criminal process	Cannot be instituted or continued during term
Arrest/imprisonment	No process during term
Personal civil claim	Two months' prior written notice
Review survives	Governmental action/material may still be reviewed

- Article 361 is not Article 194.
- Governor is part of legislature under Article 168 but not a House member.
- 2018 Q41 route: criminal-process immunity + no diminution of emoluments/allowances.
- 2025 Q59 route: office immunity versus member speech privilege.

Executive powers

- Appoints CM; other ministers on CM advice.
- Appoints Advocate General.
- Constitutionally specified role in SEC, SPSC and district-judge appointments.
- Seeks information through Article 167.
- Makes business rules in constitutional form under Article 166.
- May report under Article 356.
- Does not appoint High Court judges.
- University Chancellor role, if any, comes from State statute, not Constitution.

Legislative powers

- Article 168: Governor + House(s) constitute State legislature.
- Article 171: nominates one-sixth of Legislative Council, never Assembly.
- Nominated fields: literature, science, art, cooperative movement, social service.
- Article 174: summon, prorogue, dissolve Assembly; six-month session gap ceiling.
- Article 175: addresses/messages.
- Article 176: special address after general election and first session each year.
- Article 200 after 2025 INSC 1333: three routes-assent; reserve; or withhold-and-return a non-Money Bill with comments.
- Article 213: ordinance.
- *Nabam Rebia (2016)*: session/message power normally advice-bound.

Financial powers

- Causes annual financial statement to be laid: Article 202.
- Recommendation for demands for grants: Article 203(3).
- Recommendation for Money/specified financial Bills: Article 207.
- State Contingency Fund at disposal subject to law: Article 267(2).
- Constitutes State Finance Commission: Article 243-I.
- Formal financial gate does not equal personal budget power.

Judicial and clemency powers

- Article 161 field = offences under laws within State executive competence.
- No court-martial clemency.
- Death sentence: the Governor cannot pardon it, but may suspend, remit or commute it when the offence lies within the State executive field.

- *Maru Ram*: ministerial advice.
- *Epuru Sudhakar*: limited review for mala fides, arbitrariness, non-application of mind and material defects.
- Article 233: district-judge appointment/posting/promotion by Governor in consultation with High Court.
- Article 234: other judicial-service recruitment by Governor under rules after consultation with SPSC and High Court.

Article 163 discretion

Advice is default

- > discretion only where Constitution expressly/necessarily permits
- > objective material and proper purpose
- > no rival policy mandate
- Express/anchored examples: Bill reservation, Article 356 report, special constitutional responsibilities.
- Situational examples: hung-House CM appointment; confidence test; response after demonstrated majority loss.
- Not discretion: routine policy, minister selection against CM, party-faction adjudication, partisan session scheduling.
- Article 163(2) finality language does not create unlimited discretion.
- Article 163(3) protects the advice from inquiry, not every resulting action.

Case-law proposition bank

Case	Proposition	Qualification
<i>Shamsher Singh (1974)</i>	Constitutional head ordinarily acts on advice; Article 234 was not personal satisfaction	Narrow exceptions remain
<i>Hargovind Pant (1979)</i>	Governor is independent constitutional office, not Union employment under Article 319(d)	Presidential appointment still creates a federal link
<i>S.R. Bommai (1994)</i>	Article 356 review; floor test; federalism Basic Structure	Full emergency doctrine cross-owned
<i>Rameshwar Prasad (2006)</i>	Anticipated horse-trading cannot justify mala fide dissolution	Objective facts still matter
<i>Nabam Rebia (2016)</i>	Article 174/175 ordinarily advice-bound; narrow discretion	Speaker-removal question later referred
<i>Shivraj Singh Chouhan (2020)</i>	Objective resignation material justified prompt floor test; House decides result	Does not authorise tests on factional dissent alone
<i>Subhash Desai (2023)</i>	Objective material for floor test; no intra-party arbitration	No restoration because CM resigned
<i>D.C. Wadhwa (1986) (1987)</i>	Serial re-promulgation = fraud on Constitution	Ordinance power itself valid
<i>Krishna Kumar Singh (2017)</i>	Laying mandatory; review; no automatic enduring effects	Seven judges, 5:2
<i>B.R. Kapur (2001)</i>	Six-month non-member rule cannot cure disqualification	Use for eligibility caution

Hung Assembly and CM appointment

Clear majority -> appoint leader

Hung House -> assess objective support

- > provisional invitation
- > prompt Assembly floor test

- Article 164 appoints CM but gives no exhaustive invitation order.
- Commission preference lists guide neutrality; they are not immutable law.
- Appointment does not itself prove confidence.
- CM may be from either House in bicameral State.
- Non-member CM/minster: six consecutive months under Article 164(4).

- Temporary non-membership is not a cure for disqualification.

Floor-test doctrine

- *S.R. Bommai (1994)*: House floor is ordinary majority forum.
- *Subhash Desai (2023)*: objective material required.
- Intra-party dissent/faction letters alone are insufficient.
- Floor test cannot decide party leadership, whip validity or disqualification.
- Speaker, ECI, Governor and courts have distinct tracks.
- Fair test = objective trigger + promptness + neutral procedure + House decision.

Dismissal, dissolution and caretaker

- Majority-holding CM cannot be dismissed under a literal pleasure theory.
- Disputed majority -> floor test.
- Demonstrated loss + refusal to resign -> dismissal may follow.
- After resignation/loss, explore viable alternative before dissolution.
- No viable alternative -> election/dissolution route.
- *Rameshwar Prasad (2006)*: apprehension cannot substitute for House process.
- Caretaker government is convention-based, not a complete constitutional code.
- Caretaker: continue essentials; avoid avoidable irreversible decisions unless necessary.

Article 356 Governor route

- Trigger = constitutional breakdown, not bad administration or policy conflict.
- President may act on Governor report **or otherwise**.
- Governor report is relevant material, not final verdict.
- Majority disputes ordinarily require floor test.
- *S.R. Bommai (1994)*: judicial review, relevant material, federalism.
- *Rameshwar Prasad (2006)*: no speculative pre-emptive dissolution.
- Sarkaria/Punchhi: warning, last resort, speaking/objective report - proposals/norms.

Article 200 exact card

Option	Rule
Assent	Bill becomes law
Reserve	President decides under Article 201
Withhold and return	One combined route with comments; non-Money Bill only under the 2025 opinion

- The first proviso restricts the withholding route; it is not a fourth independent option.
- Mandatory reservation: Bill derogates from HC powers so as to endanger HC constitutional position.
- No general "pocket veto" in the text.
- Inaction creates democratic paralysis and may attract limited review.

Article 201 exact card

- President: assent or withhold.
- Non-Money Bill: may direct return through Governor.
- Re-passage does **not** compel President to assent.
- Do not import Article 200 direct-return obligation into Article 201.
- Prior presidential sanction and reservation are distinct.

2025 assent doctrine control

Date	Authority	Safe proposition
10 Nov 2023	<i>State of Punjab v. Principal Secretary to the Governor</i>	No indefinite inaction; withholding links to return under the first proviso
8 Apr 2025	<i>State of Tamil Nadu v. Governor</i> , 2025 INSC 481	General timelines prescribed; deemed assent granted to ten re-passed Bills on exceptional facts
20 Nov 2025	Article 143 opinion, 2025 INSC 1333	Three options; discretion; no merits review, rigid timelines or deemed assent; limited mandamus for glaring prolonged inaction

- The five-judge opinion expressly called the Tamil Nadu timeline paragraphs and deemed-assent reasoning erroneous.
- It was advisory, not an appeal; it did not set aside the inter partes relief.
- Write **disapproved/qualified the general propositions**, not **formally overruled the judgment**.
- Limited mandamus may require action without dictating the constitutional option.

Article 213 ordinance card

Session condition + immediate necessity

- > ordinance with Act-like force
- > within State competence and constitutional limits
- > presidential instructions where required
- > mandatory laying
- > six weeks after reassembly / earlier disapproval / withdrawal
- Bicameral State: unavailable when both Houses are in session.
- Six weeks runs from later reassembly date if Houses reassemble differently.
- *Wadhwa*: routine re-promulgation fraud.
- *Krishna Kumar Singh (2017)*: laying mandatory; review; legislative supremacy; no automatic enduring effects.
- Valid purpose = urgent bridge.
- Invalid pattern = serial bypass.

Chief Minister powers

- Head of Council and real executive.
- Recommends ministers; allocates/reshuffles portfolios; chairs Cabinet/Council.
- CM resignation/death ends existing CM-headed ministry.
- Leads Assembly majority and legislative programme.
- Advises on sessions/dissolution subject to constitutional conditions.
- Article 167 channel to Governor.
- Practical strength varies with majority, coalition, party and institutional constraints.

Article 167 recall

1. **Communicate** Council decisions on administration and legislative proposals.
 2. **Furnish** information sought by Governor.
 3. **Collectivise** an individual minister's unconsidered decision if Governor requires Council consideration.
- Information power is not policy-substitution power.

State Council of Ministers

- Article 163: aid/advice with narrow discretion carve-out.
- Article 164: CM appointed Governor; others on CM advice.
- Oaths of office and secrecy by Governor.
- Collective responsibility only to Legislative Assembly.
- Individual minister pleasure operates through CM-led practice.

- One minister's exit does not end whole ministry.
- CM's resignation/death ends existing ministry.
- Ranks: Cabinet; Minister of State independent/attached; Deputy Minister if used.
- Ranks are conventional, not an exhaustive constitutional taxonomy.

91st Amendment and Tribal Welfare Minister

Rule	Exact fact
Maximum	15% of total Assembly membership
Minimum	12
Count	Includes CM and all ministers
Defector bar	Article 164(1B), specified Tenth Schedule disqualification period
Tribal Welfare Minister	Chhattisgarh, Jharkhand, Madhya Pradesh, Odisha

- Base is Assembly, not both Houses.
- Ninety-first Amendment Act, 2003, section 3 inserted clauses (1A)-(1B), effective 1 January 2004.
- Ninety-fourth Amendment Act, 2006, section 2 substituted Chhattisgarh and Jharkhand for Bihar, effective 12 June 2006.
- Cap curbs patronage; defector bar blocks office reward.

Advocate General and business rules

- Article 165: appointed by Governor; qualified to be HC judge.
- Advises State; performs legal duties assigned.
- Holds office during Governor's pleasure; remuneration determined by Governor.
- Article 166: action in Governor's name; authentication; business rules.
- Governor's name = constitutional form, not proof of personal decision.

Chancellor role

- Not constitutional.
- Exists only under relevant State university statute.
- State statutes vary and may redesign the role subject to constitutional limits.
- Never say all Governors are ex officio Chancellors by Article 153.
- Keep university appointment litigation separate from Article 163 unless the statute raises that issue.

Dual-role debate

Bridge case

- continuity;
- neutral facilitation in genuine hung House;
- constitutional warning/information;
- federal scrutiny of sensitive State Bills.

Fault-line case

- Union appointment;
- pleasure tenure;
- assent delay;
- partisan formation/floor-test risk;
- Article 356 report;
- statutory Chancellor conflict.

Controls

- *Shamsher Singh (1974)*: advice.
- *S.R. Bommai (1994)*: review/floor.
- *Rameshwar Prasad (2006)*: no apprehension-based dissolution.
- *Subhash Desai (2023)*: objective material/no faction arbitration.
- 2025 opinion: limited review of prolonged assent inaction.

Reform commissions - proposals, not law

- **Sarkaria**: eminent outsider, non-partisan, CM consultation, compelling-reason removal, Article 356 last resort.
- **NCRWC/Venkatachaliah**: plural appointment committee; tenure disturbance only rarely.
- **Punchhi**: fixed tenure and State-legislature-linked removal/impeachment-type proposal; clearer discretion norms.
- Shared reform logic: neutral appointment + tenure insulation + objective crisis procedure.
- Constitutional reality remains Articles 155-156.

Prelims routed-demand card

1. **2018 Q41**: no criminal proceedings during term; protected emoluments/allowances not diminished.
 2. **2019 Q66**: ideal-Governor commission criteria are proposals, distinct from Article 157 qualifications.
 3. **2025 Q54**: reservation is discretionary; President not compelled after re-passage under Article 201.
 4. **2025 Q59**: Article 361 office immunity is not Article 194 member speech immunity.
- No answer letters are invented where authoritative local recording is absent.

Mains answer spines

Discretion

Article 163 -> Shamsher default -> express/situational fields
-> S.R. Bommai (1994)/Nabam/Subhash controls -> neutral process verdict

Assent

Article 200 options -> HC mandatory reservation -> Article 201
-> April/November 2025 -> no pocket veto, no deemed assent

Formation

Article 164 -> objective support -> floor test
-> alternative ministry -> dissolution last

Pleasure/reform

Articles 155-156 -> structural Union tilt
-> commission cures -> proposals-not-law

Ordinance

Article 213 urgency -> laying/six weeks
-> Wadhwa -> Krishna Kumar Singh (2017) -> bridge-not-bypass

CM/CoM

Articles 163-164 -> Assembly responsibility
-> Article 167 -> 91st Amendment -> real executive

Final rapid-fire traps

1. Governor is appointed, not elected.
2. Minimum age is 35.
3. Five years is subject to President's pleasure.
4. One person may govern multiple States.
5. Common Governor does not merge States.
6. Governor nominates one-sixth of Council, never Assembly.
7. Chancellor role is statutory, not constitutional.

8. Advice is not textually identical to Article 74, but discretion remains narrow.
9. Floor test needs objective material.
10. Floor test cannot settle intra-party dispute.
11. *Subhash Desai (2023)* gave no restoration because CM resigned.
12. *Nabam Rebia (2016)* Speaker-removal issue is referred/unresolved in the Core.
13. Article 200 return is only for non-Money Bill.
14. Mandatory reservation protects High Court position.
15. Article 201 does not compel presidential assent after re-passage.
16. No rigid court-made assent clock after November 2025 opinion.
17. No automatic deemed assent.
18. Advisory opinion did not "overrule" April 2025 judgment.
19. Prolonged unexplained indefinite inaction remains reviewable.
20. Article 213 ordinances must be laid.
21. Serial re-promulgation is unconstitutional.
22. Governor cannot pardon a death sentence, but may suspend, remit or commute it within the State offence-law field; court-martial remains outside Article 161.
23. Governor has no court-martial clemency.
24. CM non-member window is six consecutive months.
25. Six-month rule cannot cure disqualification.
26. Council responsible only to Assembly.
27. State ministry cap = 15% of Assembly, minimum 12.
28. CM is included in minister count.
29. Defector office bar is separate from cap.
30. Tribal Welfare Minister States = Chhattisgarh, Jharkhand, MP, Odisha.
31. Article 166 name clause does not mean personal gubernatorial decision.
32. Article 167 = communicate, furnish, collectivise.
33. Article 356 may rest on report or otherwise.
34. Governor report is reviewable material, not final verdict.
35. Commission recommendations are proposals, not law.
36. Avoid live office-holder lists in an institutional answer.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

ASCII MASTER FLOW - PANEL 1/12: Responsible State executive: legal form and democratic command

ARTICLES 153-167

People -> Legislative Assembly -> confidence -> CM + Council -> real executive
Governor -> constitutional State head -> formal acts and continuity

ARTICLE MAP

153 office | 154 power | 155 appointment | 156 pleasure | 157-159 conditions/oath
161 clemency | 163 advice/discretion | 164 ministry | 165 AG | 166 business | 167 CM duties

CORE RULE

Union appointment creates a federal link, not authority to govern as a Central party agent.
MUST REMEMBER: Teach Articles 153-167 office by office, then separate aid and advice, express or necessarily implied discretion, government formation, floor tests, Article 356 reporting, assent, ordinance and clemency.

ASCII MASTER FLOW - PANEL 2/12: Appointment, conditions, immunity and pleasure tenure

ENTRY: President appoints by warrant -> citizen + 35 -> Article 159 oath
CONDITIONS: no legislative seat or other office of profit; emoluments protected.
COMMON GOVERNOR: Article 153 proviso allows one person for multiple States.

ARTICLE 156

five-year outer term + President pleasure + resignation + holdover until successor.
B.P. Singhal (2010): no arbitrary, capricious, unreasonable or mala fide removal;
no guaranteed five-year lease and no routine duty to disclose reasons.

ARTICLE 361: personal temporary immunity; underlying government action remains reviewable.

ASCII MASTER FLOW - PANEL 3/12: Complete power classification and source control

EXECUTIVE: appoint CM; ministers on CM advice; AG, SEC, SPSC and district-judge roles.
LEGISLATIVE: 168, 171, 174-176, 200 and 213.
FINANCIAL: 202 budget, 203 grants, 207 Money/financial Bills, 243-I SFC.
CLEMENCY: Article 161 within State executive field; advice-bound and reviewable.
SPECIAL: Article 356 report; constitutionally specified responsibilities.
STATUTORY: university Chancellor only where State law provides.

TRAPS: Governor does not appoint HC judges or nominate Assembly members.

ASCII MASTER FLOW - PANEL 4/12: Aid and advice, discretion and special responsibilities

DEFAULT -> Shamsher Singh (1974): CM-led Council advice controls.
EXCEPTION -> express text or necessary implication; discretion remains purpose-bound.

BOUNDED FIELDS

hung-House appointment | objective floor-test doubt | Article 200 reservation
Article 356 report | UT additional charge | constitutionally specified responsibilities.

SPECIAL TEXTS

Article 371A(1)(b): Nagaland law and order | 371H(a): Arunachal law and order
individual judgment after consulting Council; Sixth Schedule assigns specified functions.
LIMIT: exceptional State texts do not create general discretion for every Governor.

ASCII MASTER FLOW - PANEL 5/12: Case-law ladder: from advice to objective material

Shamsher Singh (1974) -> constitutional head; advice is norm
S.R. Bommai (1994) -> Article 356 review; House floor ordinarily tests majority
Rameshwar Prasad (2006) -> speculative horse-trading cannot justify dissolution
B.P. Singhal (2010) -> pleasure survives; arbitrary removal does not
Nabam Rebia (2016) -> Articles 174-175 normally advice-bound
Subhash Desai (2023) -> objective material; no intra-party arbitration by floor test

CURRENT: referred Nabam Rebia (2016) Speaker-removal issue remains unresolved at 28 Aug 2026.

ASCII MASTER FLOW - PANEL 6/12: Government formation, floor test, dismissal and dissolution

CLEAR MAJORITY -> appoint recognised leader -> ordinary responsible government.
HUNG HOUSE -> invite credible confidence claimant -> early floor test -> no secret count.
LATER DOUBT -> objective material -> prompt floor test in Assembly.

AFTER TEST

confidence retained -> ministry continues
confidence lost -> resignation/dismissal -> test alternative -> dissolution only if needed.
CARETAKER -> continuity with restraint, not a fresh policy mandate.

Subhash Desai (2023): factional dissent alone insufficient.
Rameshwar Prasad (2006): anticipated misconduct cannot replace House process.
CLOSE DISTINCTION: Apply Shamsher Singh (1974), S.R. Bommai (1994), Rameshwar Prasad (2006),
B.P. Singhal, Nabam Rebia (2016) and Subhash Desai (2023) only for their stated
propositions. Article 200 discretion does not create general gubernatorial discretion.

ASCII MASTER FLOW - PANEL 7/12: Article 356 report and the federal firewall

GOVERNOR'S REASONED REPORT OR OTHER MATERIAL

|
v

PRESIDENTIAL PROCLAMATION -> parliamentary approval -> temporary consequences

|
v

JUDICIAL REVIEW UNDER S.R. BOMMAI (1994)
relevance | mala fides | constitutional purpose | possible restoration

FLOOR-TEST PRIORITY

A majority dispute ordinarily belongs in the House, not in Raj Bhavan's assessment.
TRAP: Governor recommends/reports; the Governor does not proclaim President's Rule.

ASCII MASTER FLOW - PANEL 8/12: Articles 200-201 and the 2025 assent control

ARTICLE 200

assent | withhold | return non-Money Bill once | reserve for President
mandatory reservation: Bill endangers High Court constitutional powers.
After repassage Governor cannot return again; exact remaining route is text-specific.

ARTICLE 201

President: assent | withhold | direct return of non-Money Bill through Governor
repassage does not compel presidential assent.

2025 CONTROL

State of Tamil Nadu v. Governor of Tamil Nadu (2025): facts-specific timelines/deemed assent
In re Assent, Withholding or Reservation of Bills (2025): advisory; no rigid timelines
or automatic deemed assent; prolonged unexplained inaction remains reviewable.

ASCII MASTER FLOW - PANEL 9/12: Ordinance power and clemency comparison

ARTICLE 213

required House(s) not in session + immediate necessity -> ordinance with Act-like force
-> must be laid -> expires six weeks after reassembly unless approved earlier.
D.C. Wadhwa (1986): serial re-promulgation is fraud on Constitution.
Krishna Kumar Singh (2017): laying mandatory; satisfaction reviewable; no routine survival.

ARTICLE 161 V ARTICLE 72

Governor: all six forms for State-field offences generally; no death-sentence pardon and no court-martial limb; may suspend, remit or commute a State-field death sentence.
President: Union-field offences, court-martial and every death sentence, including pardon.
Both ordinarily act on advice and remain reviewable for recognised defects.

ASCII MASTER FLOW - PANEL 10/12: Chief Minister, Article 167 and State Council

GOVERNOR APPOINTS CM -> CM PROVES ASSEMBLY CONFIDENCE

CM selects ministers -> allocates portfolios -> coordinates policy -> advises Governor.
ARTICLE 167 -> communicate Council decisions, furnish information, collectivise decisions.

COUNCIL UNDER ARTICLES 163-164

appoint ministers on CM advice | collective responsibility to Assembly
individual pleasure is mediated by CM advice and confidence | non-member: maximum six months.

91ST AMENDMENT

ministers <=15% of Assembly, minimum 12; defector bar under Article 164(1B).

ASCII MASTER FLOW - PANEL 11/12: Tribal minister, Advocate General, business and comparison

TRIBAL WELFARE MINISTER

required in Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha under Article 164 proviso.

ARTICLE 165 -> Advocate General: HC-judge qualification; advises State government.

ARTICLE 166 -> authentication and business-allocation rules; not personal Governor policy.

PRESIDENT v GOVERNOR

both constitutional heads | Article 74 differs textually from 163
Article 72 wider than 161 | Governor reserves State Bills under 200
Governor has State-specific special responsibilities; neither difference creates general discretion.
CHANCELLOR: statute-specific, not inherent constitutional office.

ASCII MASTER FLOW - PANEL 12/12: Federal neutrality, reforms, PYQs and answer synthesis

FAULT LINE

Union appointment + pleasure tenure + State-facing formation/assent/356 powers.

BRIDGE

constitutional continuity, neutral information, lawful transition and emergency warning.

REFORM ROUTE

Sarkaria: eminent outsider, detached politics, CM consultation
NCRWC/Punchhi: transparent selection, tenure restraint, reasoned action, House-centred tests
All are proposals unless enacted.

PRELIMS: elected? NO | guaranteed five years? NO | general discretion? NO

Money Bill return? NO | Chancellor constitutional? NO | Article 361 = State immunity? NO.

MAINS SPINE

text -> advice default -> exceptional trigger -> case + year -> federal risk
-> matched reform -> neutral constitutional-head conclusion.

LEGAL/SOURCE LIMIT: The 20 November 2025 Article 143 opinion gives three Article 200 options, rejects rigid timelines and deemed assent, and permits only limited mandamus against prolonged unexplained indefinite inaction. Article 161 gives all six forms for State-field offences generally, but the Governor cannot pardon a death sentence; suspension, remission or commutation remains possible within that field, while court-martial remains outside it.